

Exhibit 10.1

EXECUTION VERSION

364-DAY REVOLVING CREDIT AGREEMENT

Dated as of May 31, 2024

among

HUMANA INC.,

THE SEVERAL BANKS AND OTHER FINANCIAL INSTITUTIONS
FROM TIME TO TIME PARTIES HERETO,

and

JPMORGAN CHASE BANK, N.A.,
as Agent,

BANK OF AMERICA, N.A.,
as Syndication Agent,

CITIBANK, N.A., GOLDMAN SACHS BANK USA, PNC CAPITAL MARKETS LLC, U.S. BANK, NATIONAL ASSOCIATION,
FARGO SECURITIES, LLC,
as Documentation Agents

JPMORGAN CHASE BANK, N.A., BOFA SECURITIES, INC., CITIBANK, N.A., GOLDMAN SACHS BANK USA, PNC CAPITAL MARKETS LLC, U.S. BANK, NATIONAL ASSOCIATION and WELLS FARGO SECURITIES, LLC
as Joint Lead Arrangers and Joint Bookrunners

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EXHIBIT K-4

Form of U.S. Tax Compliance Certificate (Foreign Lenders That Are Partnerships For U.S. Federal Income Tax)

364-DAY REVOLVING CREDIT AGREEMENT, dated as of May 31, 2024, among HUMANA INC., a Delaware corporation (the “Company”), the several banks and other financial institutions from time to time parties to this Agreement (the “Banks”), the agent for the Banks (the “Agent”), the cover page of this Agreement and JPMORGAN CHASE BANK, N.A., a national banking association, as administrative agent for the Banks (in such capacity, the “Agent”).

W I T N E S S E T H:

WHEREAS, the Company has requested that the Banks provide a revolving credit facility to the Company in the aggregate amount of \$2,107,812,500; and

WHEREAS, for valuable consideration, the Banks are willing to provide such credit facility upon and subject to the terms and conditions hereinafter set forth;

NOW, THEREFORE, the parties hereto hereby agree as follows:

SECTION 1. DEFINITIONS

1.1 Defined Terms. As used in this Agreement, the following terms have the following meanings:

“5-Year Revolving Facility”: the Fifth Amended and Restated Credit Agreement, dated as of June 2, 2023, among the Company, the borrower, the lenders from time to time party thereto and JPMorgan, as agent, as amended by the Amendment to 5-Year Revolving Facility

“Acquisition Indebtedness”: any Indebtedness of the Company or any of its Subsidiaries that has been issued for the purpose of, in whole or in part, a Material Acquisition and any related transactions or series of related transactions (including for the purpose of replacing all or a portion of any pre-existing Indebtedness of the Company, any of its Subsidiaries or the person(s) or assets to be acquired) that (a) the release of the proceeds thereof to the Company and its Subsidiaries is contingent upon the consummation of such Material Acquisition pending such release, such proceeds are held in escrow (and, if the definitive agreement (or, in the case of a tender offer or similar transaction, the definitive offer document) for such acquisition is terminated prior to the consummation of such Material Acquisition or if such Material Acquisition is otherwise not consummated by the date specified in the definitive documentation relating to such Indebtedness, such proceeds shall be used to satisfy and discharge all obligations of the Company and its Subsidiaries in respect of such Indebtedness) or (b) such Indebtedness contains a “mandatory redemption” provision (or other similar provision) or otherwise permits such Indebtedness to be redeemed or prepaid if such Acquisition is not consummated by the date specified in the definitive documentation relating to such Indebtedness (and if the definitive documentation in the case of a tender offer or similar transaction, the definitive offer document) for such Material Acquisition is terminated in accordance with the terms of such definitive documentation prior to the consummation of such Material Acquisition or such Material Acquisition is otherwise not consummated by the date specified in the definitive documentation relating to such Indebtedness, such Indebtedness is so redeemed or prepaid within 90 days of such termination (or such specified date, as the case may be).

“Adjusted Daily Simple SOFR”: an interest rate per annum equal to (a) the Daily Simple SOFR, plus (b) 0.10%; provided that if the Adjusted Daily Simple SOFR as so determined would be less than the Floor, such rate shall be deemed to be equal to the Floor for the purposes of this Agreement.

“Adjusted Term SOFR Rate”: for any Interest Period, an interest rate per annum equal to (a) the Term SOFR Rate for such Interest Period, plus (b) 0.10%; provided that if the Adjusted Term SOFR Rate as so determined would be less than the Floor, such rate shall be deemed to be equal to the Floor for the purposes of this Agreement.

“Affected Financial Institution”: (a) any EEA Financial Institution or (b) any UK Financial Institution.

“Affiliate”: as to any Person, any other Person (other than a Subsidiary) which, directly or indirectly, is in control of, is under common control with, such Person. For purposes of this definition, “control” of a Person means the power, directly or indirectly, to cause the direction of the management and policies of such Person, whether by contract or otherwise.

“Aggregate Outstanding Extensions of Credit”: as to any Bank at any time, an amount equal to the sum of the aggregate of all Revolving Credit Loans made by such Bank then outstanding.

“Agreement”: this 364-Day Revolving Credit Agreement, as the same may be amended, supplemented or otherwise modified from time to time.

“Alternate Base Rate”: for any day, a rate per annum equal to the greatest of (a) the Prime Rate in effect on such day, (b) the Prime Rate in effect on such day plus 1/2 of 1% and (c) the Adjusted Term SOFR Rate for a one month Interest Period as published two U.S. Government Business Days prior to such day (or if such day is not a Business Day, the immediately preceding Business Day) plus 1%; provided that if the Alternate Base Rate as so determined would be less than the Floor, such rate shall be deemed to be equal to the Floor for the purposes of this definition, the Adjusted Term SOFR Rate for any day shall be based on the Term SOFR Reference Rate at approximately 5:00 PM on such day (or any amended publication time for the Term SOFR Reference Rate, as specified by the CME Term SOFR Administrator or the SOFR Reference Rate methodology). Any change in the Alternate Base Rate due to a change in the Prime Rate, the NYFRB Rate or the Adjusted Term SOFR Rate shall be effective from and including the effective date of such change in the Prime Rate, the NYFRB Rate or the Adjusted Term SOFR Rate, respectively. If the Alternate Base Rate is being used as an alternate rate of interest pursuant to subsection 2.10 (for the avoidance of doubt, until the Benchmark Replacement has been determined pursuant to subsection 2.10(b)), then the Alternate Base Rate shall be the greatest of (a) and (b) above and shall be determined without reference to clause (c) above. For the avoidance of doubt, if the Alternate Base Rate as so determined pursuant to the foregoing would be less than 1%, such rate shall be deemed to be 1% for purposes of this Agreement.

“Alternate Base Rate Loans”: Revolving Credit Loans hereunder at such time as they are made and/or being maintained outstanding, based upon the Alternate Base Rate.

“Amendment to 5-Year Revolving Credit Agreement”: the First Amendment to Fifth Amended and Restated Credit Agreement, dated May 31, 2024, among the Company, the lenders party thereto and JPMorgan.

“Amendment to 5-Year Revolving Credit Agreement Effective Date”: with respect to the Amendment to 5-Year Revolving Credit Agreement, the effective date of the Amendment to 5-Year Revolving Credit Agreement.

“Ancillary Document”: as defined in subsection 10.8.

“Anti-Corruption Laws”: all laws, rules and regulations of any jurisdiction applicable to the Company or any of its Subsidiaries from time to time concerning or relating to bribery or corruption.

“Applicable Margin”: for each Type of Loan, the rate per annum applicable to such Type determined in accordance with the applicable margin schedule.

“Applicable Parties”: as defined in subsection 9.14(c).

“Approved Borrower Portal”: as defined in subsection 9.15(a).

“Approved Electronic Platform”: as defined in subsection 9.14(a).

“Approved Fund”: any Person (other than a natural person) that is engaged in making, purchasing, holding or investing in, or providing similar extensions of credit in the ordinary course of its business and that is administered or managed by (a) a Bank, (b) an Affiliate of a Bank, or an Affiliate of an entity that administers or manages a Bank.

“ASC”: as defined in subsection 1.2(b).

“Assignment and Assumption”: an Assignment and Assumption, substantially in the form of Exhibit C.

“Available Commitments”: as to any Bank at a particular time, an amount equal to the difference between (a) the Available Commitments at such time and (b) the Aggregate Outstanding Extensions of Credit at such time.

“Available Tenor”: as of any date of determination and with respect to the then-current Benchmark, as applicable, any component thereof or payment period for interest calculated with reference to such Benchmark (or component thereof) that is or may be used for determining the length of an Interest Period for any term rate or otherwise, for determining any frequency of interest calculated pursuant to this Agreement as of such date and not including, for the avoidance of doubt, any tenor for such Benchmark that has been then-removed from the definition of “Interest Period” pursuant to clause (e) of subsection 2.10.

“Bail-In Action”: the exercise of any Write-Down and Conversion Powers by the applicable Resolution Authority in respect of an Affected Financial Institution.

“Bail-In Legislation”: (a) with respect to any EEA Member Country implementing Article 55 of Directive 2014/59/EU of the European Parliament and of the Council of the European Union, the implementing law, regulation rule or requirement for such EEA Member Country at any time which is described in the EU Bail-In Legislation Schedule and (b) with respect to the United Kingdom, Part I of the United Kingdom Banking (Financial Recovery) Bill 2009 (as amended from time to time) and any other law, regulation or rule applicable in the United Kingdom relating to the resolution of failing banks, investment firms or other financial institutions or their affiliates (other than through liquidation, administration or other proceedings).

“Bank Obligations”: as defined in subsection 8.1.

“Bank Parent”: with respect to any Bank, any Person as to which such Bank is, directly or indirectly, a Subsidiary.

“Bankruptcy Event”: with respect to any Person, such Person becomes the subject of a bankruptcy or insolvency proceeding, or a receiver, conservator, trustee, administrator, custodian, assignee for the benefit of creditors or similar Person charged with the reorganization or liquidation of its business appointed for it, or, in the good faith determination of the Agent, has taken any action in furtherance of, or consent to, approval of, or acquiescence in, any such proceeding or appointment; provided that a Bankruptcy Event shall not result in the loss of any ownership interest, or the acquisition of any ownership interest, in such Person by a Governmental Authority or instrumentality; and further that such ownership interest does not result in or provide such Person with immunity from the jurisdiction of courts within the United States from the enforcement of judgments or writs of attachment on its assets or permit such Person (or such Governmental Authority or instrumentality) to reject, repudiate, disavow or disaffirm any contracts or agreements made by such Person.

“Banks”: as defined in the introductory paragraph to this Agreement.

“Benchmark”: initially, the Term SOFR Rate; provided that if a Benchmark Transition Event and its related Benchmark Replacement have occurred with respect to the Term SOFR Rate or the then-current Benchmark, then “Benchmark” means the applicable Benchmark Rate to the extent that such Benchmark Replacement has replaced such prior benchmark rate pursuant to clause (b) of subsection 8.1.

“Benchmark Replacement”: for any Available Tenor, the first alternative set forth in the order below that can be determined to be applicable for the applicable Benchmark Replacement Date:

(1) the Adjusted Daily Simple SOFR; and

(2) the sum of: (a) the alternate benchmark rate that has been selected by the Agent and the Company as the replacement for the current Benchmark for the applicable Corresponding Tenor giving due consideration to (i) any selection or recommendation of an alternate benchmark rate or the mechanism for determining such a rate by the Relevant Governmental Body or (ii) any evolving or then-current market convention for determining a benchmark rate as a replacement for the then-current Benchmark for Dollar-denominated syndicated debt at such time in the United States and (b) the related Benchmark Replacement Adjustment.

If the Benchmark Replacement as determined pursuant to clause (1) or (2) above would be less than the Floor, the Replacement will be deemed to be the Floor for the purposes of this Agreement and the other Loan Documents

“Benchmark Replacement Adjustment”: with respect to any replacement of the then-current Benchmark with an Unadjusted Benchmark Replacement for any applicable Interest Period and Available Tenor for any setting of such Unadjusted Benchmark Replacement, the spread adjustment or method for calculating or determining such spread adjustment (which may be a positive or negative value or zero) that has been selected by the Company and the Company for the applicable Corresponding Tenor giving due consideration to (i) any selection or recommendation of a spread adjustment or method for calculating or determining such spread adjustment, for the replacement of such Benchmark with the applicable Unadjusted Benchmark Replacement by the Relevant Governmental Body on the applicable Benchmark Replacement Date and/or (ii) any evolving or then-prevailing market convention for determining a spread adjustment, or method for calculating or determining such spread adjustment, for the replacement of such Benchmark with the applicable Unadjusted Benchmark Replacement for Dollar-denominated syndicated credit facilities at the time of such replacement.

“Benchmark Replacement Conforming Changes”: with respect to any Benchmark Replacement, any technical, administrative or operational changes (including changes to the definition of “Alternate Base Rate”, the definition of “Business Day”, the definition of “Securities Business Day”, the definition of “Interest Period”, timing and frequency of determining rates and making payments of interest, the timing of borrowing requests or prepayment, conversion or continuation notices, length of lookback periods, the applicability of breakage provisions, and other technical, administrative or operational matters) that the Agent decides in its reasonable discretion may be appropriate to reflect the implementation of such Benchmark Replacement and to permit the administration thereof by the Agent in a manner substantially consistent with market practice (or, if the Agent decides that adoption of any portion of such market practice is not administratively feasible or if the Agent determines that no market practice for the administration of such Benchmark Replacement exists, in such other manner of administration as the Agent decides is necessary in connection with the administration of this Agreement and the other Loan Documents).

“Benchmark Replacement Date”: with respect to any Benchmark, the earlier to occur of the following events with respect to the current Benchmark:

(1) in the case of clause (1) or (2) of the definition of “Benchmark Transition Event,” the later of (a) the date of the occurrence of such event or publication of information referenced therein and (b) the date on which the administrator of such Benchmark (or the publisher of such Benchmark in the calculation thereof) permanently or indefinitely ceases to provide all Available Tenors of such Benchmark (or such component thereof);

(2) in the case of clause (3) of the definition of “Benchmark Transition Event,” the first date on which such Benchmark (or such component thereof) has been determined and announced by the regulatory supervisor for the relevant jurisdiction that such Benchmark (or such component thereof) is no longer representative; provided that such non-representativeness will be determined with reference to the most recent statement or publication referenced in such clause (3) and even if any

Available Tenor of such Benchmark (or such component thereof) continues to be provided on such date.

For the avoidance of doubt, (i) if the event giving rise to the Benchmark Replacement Date occurs on the same day as, but Reference Time in respect of any determination, the Benchmark Replacement Date will be deemed to have occurred prior to the Reference Time in respect of such determination and (ii) the “Benchmark Replacement Date” will be deemed to have occurred in the case of clause (1) or (2) with respect to such Benchmark upon the occurrence of the applicable event or events set forth therein with respect to all then-current Available Tenors of such Benchmark (or the published component used in the calculation thereof).

“Benchmark Transition Event”: with respect to any Benchmark, the occurrence of one or more of the following events with respect to the then-current Benchmark:

(1) a public statement or publication of information by or on behalf of the administrator of such Benchmark (or such component used in the calculation thereof) announcing that such administrator has ceased or will cease to provide all Available Tenors of such Benchmark (or such component thereof), permanently or indefinitely, provided that, at the time of such statement or publication, there is no successor administrator that will continue to provide any Available Tenor of such Benchmark (or such component thereof);

(2) a public statement or publication of information by the regulatory supervisor for the administrator of such Benchmark (or such published component used in the calculation thereof), the Board, the NYFRB, the CME Term SOFR Administrator, an insolvency proceeding having jurisdiction over the administrator for such Benchmark (or such component), a resolution authority with jurisdiction over the administrator of such Benchmark (or such component) or a court or an entity with similar insolvency or resolution authority over the administrator of such Benchmark (or such component), in each case, which states that the administrator of such Benchmark (or such component) has ceased to provide all Available Tenors of such Benchmark (or such component thereof) permanently or indefinitely; provided that if, at the time of such statement or publication, there is no successor administrator that will continue to provide any Available Tenor of such Benchmark (or such component thereof); or

(3) a public statement or publication of information by the regulatory supervisor for the administrator of such Benchmark (or such published component used in the calculation thereof) announcing that all Available Tenors of such Benchmark (or such component thereof) will no longer, or as of a specified future date will no longer be, representative.

For the avoidance of doubt, a “Benchmark Transition Event” will be deemed to have occurred with respect to any Benchmark (or such component used in the calculation thereof) if a public statement or publication of information set forth above has occurred with respect to each then-current Available Tenor of such Benchmark (or such component used in the calculation thereof).

“Benchmark Unavailability Period”: with respect to any Benchmark, the period (if any) (x) beginning at the time that the Benchmark Replacement Date pursuant to clauses (1) or (2) of the definition thereof has occurred if, at such time, no Benchmark Replacement

then-current Benchmark for all purposes hereunder and under the other Loan Documents in accordance with subsection 2.10 and (y) that a Benchmark Replacement has replaced such then-current Benchmark for all purposes hereunder and under the other Loan Documents in accordance with subsection 2.10.

“Beneficial Ownership Certification”: a certification regarding beneficial ownership or control as required by the Beneficial Ownership Regulation.

“Beneficial Ownership Regulation”: 31 C.F.R. § 1010.230.

“Benefit Plan”: any of (a) an “employee benefit plan” (as defined in ERISA) that is subject to Title I of ERISA, (b) a “plan” subject to Section 4975 of the Code or (c) any Person whose assets include (for purposes of ERISA Section 3(42) or otherwise for purposes of Title I of ERISA or Section 4975 of the Code) the assets of any such “employee benefit plan” or “plan”.

“Benefitted Bank”: as defined in subsection 10.7(a).

“Board”: the Board of Governors of the Federal Reserve System of the United States of America.

“BofA”: Bank of America, N.A.

“Borrowing Date”: any Business Day specified in a notice pursuant to subsection 2.1(b) as a date on which the Company or its Subsidiaries may request the Banks to make Revolving Credit Loans, as the case may be, hereunder.

“Business Day”: a day other than a Saturday, Sunday or other day on which commercial banks in New York City are not authorized or required by law to close; provided that, in addition to the foregoing, in relation to Loans referencing the Adjusted Daily SOFR Rate (applicable pursuant to subsection 2.10) or the Adjusted Term SOFR Rate and any interest rate settings, funding, disbursements, settlements or other dealings of any such Loans or any other dealings of such Loans, a Business Day shall be any such day that is also a U.S. Government Security Day.

“Capital Stock”: any and all shares, interests, participations or other equivalents (however designated) of capital stock of any and all equivalent ownership interests in a Person (other than a corporation) and any and all warrants or options to purchase any such capital stock.

“Change in Control”: of any corporation, shall occur when (a) any Person or “group” (as defined in Section 13(d)(3) of the Securities Exchange Act of 1934, as amended), other than the Company, shall acquire more than 35% of the Voting Stock of such corporation or (b) the Directors shall not constitute a majority of the board of directors of such corporation.

“Charges”: as defined in subsection 10.18.

“Clocktower Building”: the real property located at 123 E. Main Street, Louisville, Kentucky 40202

“Closing Date”: the date on which all of the conditions precedent for the Closing Date set forth in subsection 5.1 shall or waived, such date being May 31, 2024.

“CME Term SOFR Administrator”: CME Group Benchmark Administration Limited as administrator of the forward-lo Overnight Financing Rate (SOFR) (or a successor administrator).

“Code”: the Internal Revenue Code of 1986, as amended from time to time.

“Commitment”: as to any Bank, its obligation to make Revolving Credit Loans to the Company pursuant to subsection 2.19, the aggregate principal amount not to exceed at any one time outstanding the amount set forth opposite such Bank’s name in Schedule 2.19, which may be reduced or increased from time to time as provided herein.

“Commitment Percentage”: as to any Bank, the percentage of the aggregate Commitments for all Banks constituted by the Company. In the case of subsection 2.20 when a Defaulting Bank shall exist, Commitment Percentages shall be determined with reference to the Defaulting Bank’s Commitment.

“Commitment Period”: the period from and including the Closing Date to but not including the Commitment Termination Date, or an earlier date on which the Commitments shall terminate as provided herein.

“Commitment Termination Date”: the date that is 364 days after the Closing Date (or, if such date is not a Business Day, the next preceding Business Day).

“Communications”: collectively, any notice, demand, communication, information, document or other material provided to the Company pursuant to any Loan Document or the transactions contemplated therein which is distributed by the Agent or any Bank by electronic communications pursuant to this subsection, including through an Approved Electronic Platform.

“Company”: as defined in the introductory paragraph to this Agreement.

“Conduit Lender”: any special purpose corporation organized and administered by any Bank for the purpose of making Loans required to be made by such Bank and designated by such Bank in a written instrument; provided that the designation by any Bank of a Conduit Lender shall not relieve the designating Bank of any of its obligations to fund a Loan under this Agreement if, for any reason, its Conduit Lender fails to fund any such Loan, and the designating Bank (and not the Conduit Lender) shall have the sole right and responsibility to deliver all communications required or requested under this Agreement with respect to its Conduit Lender; provided further that no Conduit Lender shall (a) be entitled to receive any greater amount pursuant to subsections 2.13, 2.14, 2.15, 2.16 or 10.5 than the designating Bank would have been entitled to receive in the absence of extensions of credit made by such Conduit Lender (and each Bank which designates a Conduit Lender shall indemnify the Company for any such extensions).

increased taxes, costs, expenses, liabilities or losses associated with any payment thereunder to such Conduit Lender) or (b) be deemed to be a breach of the Commitment.

“Consolidated Capitalization Ratio”: at the last day of any fiscal quarter of the Company, the ratio of (i) all Total Indebtedness of the Company and its Subsidiaries outstanding on such date to (ii) the sum of (A) all Total Consolidated Indebtedness of the Company and its Subsidiaries outstanding on such date and (B) Consolidated Net Worth on such date.

“Consolidated Net Tangible Assets”: at any date, the total amount of assets (less applicable reserves and other properly payable amounts) after deducting therefrom (a) all current liabilities as disclosed on the consolidated balance sheet of the Company (excluding any liabilities with terms extendable or renewable at the option of the obligor thereon to a time more than 12 months after the time as of which the balance sheet is being computed and excluding any deferred income taxes that are included in current liabilities) and (b) all goodwill, trade names, trademarks, patents, unamortized debt discount and expense and other like intangible assets, all as set forth on the most recent consolidated balance sheet of the Company and computed in accordance with GAAP.

“Consolidated Net Worth”: at any date, the stockholders’ equity of the Company and its Subsidiaries as most recently reported by the Company pursuant to subsection 6.4 as of such date (or, if prior to the first report under subsection 6.4, as reported in the most recent financial statements delivered pursuant to subsection 5.1(d)) (it being understood for the avoidance of doubt that, for purposes of subsection 6.4, the stockholders’ equity of the Company and its Subsidiaries reported by the Company pursuant to subsection 6.4 with respect to the fiscal year in which such covenant is being tested), determined in accordance with GAAP.

“Continuing Director”: any member of the board of directors of the Company who is a member of such board on the date of the Agreement, and any Person who is a member of such board and whose nomination as a director was approved by a majority of the directors then on such board.

“Contractual Obligation”: as to any Person, any provision of any security issued by such Person or of any agreement or other undertaking to which such Person is a party or by which it or any of its property is bound.

“Control Group Person”: any Person which is a member of the controlled group or is under common control with the Company or any Subsidiary within the meaning of Section 414(b) or 414(c) of the Code or Section 4001(b)(1) of ERISA.

“Corresponding Tenor”: with respect to any Available Tenor, as applicable, either a tenor (including overnight) or an interest period having approximately the same length (disregarding business day adjustment) as such Available Tenor.

“Credit Party”: the Agent or any other Bank.

“Daily Simple SOFR”: for any day (a “SOFR Rate Day”), a rate per annum equal to SOFR for the day (such day “SOFR Rate Day”) that is five (5) U.S. Government Securities Business Days prior to (i) if such SOFR Rate Day is a U.S. Government Securities Business Day

“Electronic Signature”: an electronic sound, symbol, or process attached to, or associated with, a contract or other record intended to be authenticated by a Person with the intent to sign, authenticate or accept such contract or record.

“Embargoed Jurisdiction”: any country, region or territory that is subject to a comprehensive embargo under applicable law, as modified from time to time by relevant Governmental Authorities and which, as of the date of this Agreement, shall include the so-called Donetsk People’s Republic, the so-called Luhansk People’s Republic, the Crimea, Kherson and Zaporizhzhia regions of Ukraine, Cuba, Iran and Syria.

“ERISA”: the Employee Retirement Income Security Act of 1974, as amended from time to time.

“EU Bail-In Legislation Schedule”: the EU Bail-In Legislation Schedule published by the Loan Market Association (LMA) (a Person), as in effect from time to time.

“Event of Default”: any of the events specified in subsection 8.1; provided that any requirement for the giving of notice or both, or any other condition, event or act has been satisfied.

“Existing Credit Agreement”: the 364-Day Revolving Credit Agreement, dated as of June 2, 2023, among the Company and its lenders from time to time party thereto and JPMorgan, as agent.

“FATCA”: Sections 1471 through 1474 of the Code, as of the date of this Agreement (or any amended or successor agreement that is substantively comparable and not materially more onerous to comply with), any current or future regulations or official interpretations of the Code entered into pursuant to Section 1471(b)(1) of the Code and any fiscal or regulatory legislation, rules or practices adopted by the United States or any intergovernmental agreement, treaty or convention among Governmental Authorities entered into in connection with the implementation of the foregoing.

“Federal Funds Effective Rate”: for any day, the rate calculated by the NYFRB based on such day’s federal funds rate for depository institutions (as determined in such manner as the NYFRB shall set forth on the NYFRB’s Website from time to time) and the next succeeding Business Day by the NYFRB as the federal funds effective rate. If the Federal Funds Effective Rate shall be less than zero, it shall be deemed zero for purposes hereof.

“Financing Lease”: any lease of property, real or personal, if the then present value of the minimum rental commitment under the lease, in accordance with GAAP, be capitalized on a balance sheet of the lessee; provided that for purposes of this Agreement or any other agreement, no event shall any lease that would be categorized as an “operating lease” in accordance with ASC 842 be considered a Financing Lease.

“Floor”: the benchmark rate floor, if any, provided in this Agreement initially (as of the execution of this Agreement, or any amendment or renewal of this Agreement or otherwise) with respect to the Adjusted Term SOFR Rate and Adjusted Daily Simple SOFR Rate. In the absence of avoidance of doubt, the initial Floor for each of the Adjusted Term SOFR Rate and Adjusted Daily Simple SOFR shall be the then applicable Floor.

“GAAP”: subject to subsection 1.2(b), generally accepted accounting principles in the United States of America from effect.

“Governmental Authority”: any nation or government, any state or other political subdivision thereof, any entity exercising legislative, judicial, regulatory or administrative functions of or pertaining to government (including any supra-national bodies such as the United Nations, the International Monetary Fund, the World Bank, the International Union or the European Central Bank) and any group or body charged with setting financial accounting or regulatory capital rules (including, without limitation, the Financial Accounting Standards Board, the Bank for International Settlements or the Basel Committee on Banking Supervision or any successor or similar authority to any of the foregoing).

“Guarantee Obligation”: of any Person, any arrangement whereby credit is extended to one party on the basis of any other Person, whether that promise is expressed in terms of an obligation to pay the Indebtedness of another, or to purchase an obligation of another, or to purchase assets or to provide funds in the form of lease or other types of payments under circumstances that would enable that other Person to discharge or more of its obligations, whether or not such arrangement is listed in the balance sheet of the obligor or referred to in a footnote thereto, or include endorsements of items for collection in the ordinary course of business.

“Headquarters”: the principal executive offices of the Company located at 500 West Main Street, Louisville, Kentucky.

“HMO”: a health maintenance organization doing business as such (or required to qualify or to be licensed as such) under applicable HMO Regulations.

“HMO Regulations”: all laws, regulations, directives and administrative orders applicable under federal or state law to health maintenance organizations and any regulations, orders and directives promulgated or issued pursuant thereto.

“HMO Regulator”: any Person charged with the administration, oversight or enforcement of an HMO Regulation.

“Increased Commitment Notice”: a notice substantially in the form of Exhibit J-2.

“Increased Commitment Closing Date”: any Business Day designated as such in an Increased Commitment Notice.

“Indebtedness”: of a Person, at a particular date, the sum (without duplication) at such date of (a) all indebtedness of such Person, including borrowed money, (b) all obligations of such Person for the deferred purchase price of property or services, (c) all obligations of such Person by a note, bond, debenture or similar instrument, (d) all obligations of such Person under Financing Leases, (e) all obligations of such Person of letters of credit, acceptances or similar obligations issued or created for the account of such Person in excess of \$1,000,000 (other than undrawn letters of credit, acceptances or similar obligations), (f) Indebtedness of others secured by any Lien on any property owned or leased by any Subsidiary even though such Person has not assumed or otherwise become liable for the payment thereof (but excluding, in the case of (f), involuntary Liens on the property of such Person that are being contested in good faith and by appropriate proceedings and

month at the end of such Interest Period) shall end on the last Business Day of a calendar month, (iv) any interest period pertaining to a Benchmark Loan that would otherwise end after the Termination Date shall end on the Termination Date and (v) no tenor that has been specified in this definition pursuant to subsection 2.10(e) shall be available for specification in such notice of borrowing or interest election.

“IRS”: the United States Internal Revenue Service.

“JPMorgan”: JPMorgan Chase Bank, N.A.

“Lender Affiliate”: (a) any Affiliate of any Bank, (b) any Person that is administered or managed by any Bank and that is engaged in making, purchasing, holding or otherwise investing in commercial loans and similar extensions of credit in the ordinary course of business, and (c) with respect to any Bank which is a fund that invests in commercial loans and similar extensions of credit, any other fund that invests in commercial loans and similar extensions of credit and is managed or advised by the same investment advisor as such Bank or by an Affiliate of such investment advisor.

“Lien”: any lien (statutory or other), security interest or other charge or encumbrance of any kind, or preference, or other preferential arrangement that has the same practical effect as any of the foregoing (including, without limitation, any conditional sale agreement, retention agreement, or any financing lease having substantially the same economic effect as any of the foregoing).

“Loan”: any loan made by any Bank pursuant to this Agreement.

“Loan Documents”: this Agreement and the Notes.

“Margin Stock”: as defined in Regulation U.

“Material Acquisition”: an acquisition the consideration for which is equal to or greater than \$125,000,000.

“Material Adverse Effect”: any material adverse effect on (a) the business, assets, operations or condition (financial or otherwise) of the Company and its Subsidiaries taken as a whole, (b) the ability of the Company to perform its obligations under this Agreement or the Loan Documents, or (c) the remedies of the Banks with respect to the Company and its Subsidiaries under any of the Loan Documents.

“Material Step-Up Acquisition”: an acquisition the cash consideration for which is equal to or greater than \$1,000,000.

“Maximum Rate”: as defined in subsection 10.18.

“Moody’s”: Moody’s Investors Service, Inc. and any successor thereto.

“Multiemployer Plan”: a Plan which is a multiemployer plan as defined in Section 4001(a)(3) of ERISA.

“New Bank”: as defined in subsection 2.21(b).

“Non-U.S. Bank”: as defined in subsection 2.15(c)(ii).

“Note”: any Revolving Credit Note.

“NYFRB”: the Federal Reserve Bank of New York.

“NYFRB Rate”: for any day, the greater of (a) the Federal Funds Effective Rate in effect on such day and (b) the Overnight Rate in effect on such day (or for any day that is not a Business Day, for the immediately preceding Business Day); provided that if rates are published for any day that is a Business Day, the term “NYFRB Rate” means the rate for a federal funds transaction quoted at 11:00 a.m. on such day received by the Agent from a federal funds broker of recognized standing selected by it; provided further that if any of the aforementioned rates is less than zero, such rates shall be deemed to be zero.

“NYFRB’s Website”: the website of the NYFRB at <http://www.newyorkfed.org>, or any successor source.

“Other Connection Taxes”: with respect to the Agent or any Bank, taxes imposed as a result of a present or former connection between such Agent or Bank and the jurisdiction imposing such tax (other than connections arising from such Agent or Bank having executed a security agreement with a party to, performed its obligations under, received payments under, received or perfected a security interest under, engaged in any transaction pursuant to or enforced any Loan Document, or sold or assigned an interest in any Loan or Loan Document).

“Other Taxes”: all present or future stamp, court or documentary, intangible, recording, filing or similar taxes that arise from the execution, delivery, performance, enforcement or registration of, from the receipt or perfection of a security interest or otherwise with respect to any Loan Document, except any such taxes that are Other Connection Taxes imposed with respect to an assignment or an assignment made pursuant to subsection 2.18(c)).

“Overnight Bank Funding Rate”: for any day, the rate comprised of both overnight federal funds and overnight eurodollar rates, as published in the Composite Rate (as such composite rate shall be determined by the NYFRB and published forth on the NYFRB’s Website from time to time) and published on the next succeeding Business Day by the NYFRB as an overnight rate (from and after such date as the NYFRB shall commence to publish such composite rate).

“Participant Register”: as defined in subsection 10.6(b).

“Participants”: as defined in subsection 10.6(b).

“Patriot Act”: as defined in subsection 10.14.

“Payment”: as defined in subsection 9.13(a).

“Payment Notice”: as defined in subsection 9.13(b).

“Payment Sharing Notice”: a written notice from the Company, or any Bank, informing the Agent that an Event of Default has occurred and is continuing and directing the Agent to allocate payments thereafter received from the Company in accordance with subsection 10.6(d).

“PBGC”: the Pension Benefit Guaranty Corporation established pursuant to Subtitle A of Title IV of ERISA.

“Person”: an individual, partnership, corporation, limited liability company, business trust, joint stock company, trust, partnership, enterprise, unincorporated association, joint venture, Governmental Authority or other entity of whatever nature.

“Plan”: any employee benefit plan as defined in Section 3(3), and subject to Title IV of ERISA, and in respect of which the Company, its Subsidiary or any Control Group Person is (or, if such Plan were terminated, would under Section 4069 of ERISA be deemed to be) the sponsor, as defined in Section 3(5) of ERISA.

“Pricing Grid”: the Pricing Grid set forth in Schedule II.

“Primary Lead Arrangers”: JPMorgan and BofA Securities, Inc.

“Prime Rate”: the rate of interest last quoted by The Wall Street Journal as the “Prime Rate” in the U.S. or, if The Wall Street Journal ceases to quote such rate, the highest per annum interest rate published by the Board in Federal Reserve Statistical Release H.15 (519 Rates) as the “bank prime loan” rate or, if such rate is no longer quoted therein, any similar rate quoted therein (as determined by the Agent) or similar release by the Board (as determined by the Agent). Each change in the Prime Rate shall be effective from and including the date of such change, whether publicly announced or quoted as being effective.

“Prohibited Transaction”: as defined in Section 406 of ERISA and Section 4975(c) of the Code.

“Projections”: as defined in subsection 4.4(a).

“Protected Person”: as defined in subsection 10.5(a).

“PTE”: a prohibited transaction class exemption issued by the U.S. Department of Labor, as any such exemption may be modified from time to time.

“Purchasing Banks”: as defined in subsection 10.6(d).

“Reference Time”: with respect to any setting of the then-current Benchmark, (1) if such Benchmark is the Term SOFR Rate or Daily Simple SOFR (Chicago time) on the day that is two U.S. Government Securities Business Days preceding the date of such setting, (2) if such Benchmark is the Term SOFR Rate or Daily Simple SOFR, then four Business Days prior to such setting and (3) if such Benchmark is not the Term SOFR Rate or Daily Simple SOFR, then determined by the Agent in its reasonable discretion.

“Register”: as defined in subsection 10.6(e).

“Regulation U”: Regulation U of the Board.

“Regulation X”: Regulation X of the Board.

“Regulatory Authority”: as defined in subsection 10.12.

“Relevant Governmental Body”: the Board, the NYFRB or the CME Term SOFR Administrator, as applicable, or a committee endorsed or convened by the Board or the NYFRB, or, in each case, any successor thereto.

“Reportable Event”: any of the events set forth in Section 4043(c) of ERISA, other than those events as to which the notice period is waived under PBGC Reg. § 4043 as in effect on the date hereof (no matter how such notice requirement may be changed).

“Required Banks”: (a) during the Commitment Period, Banks whose Commitment Percentages aggregate more than 50% of the Commitments have expired or been terminated, Banks whose outstanding Loans represent in the aggregate more than 50% of all outstanding Loans.

“Requirement of Law”: as to any Person, any law, treaty, rule or regulation or determination of an arbitrator or a Governmental Authority, in each case applicable to or binding upon such Person or any of its property or to which such Person or any of its property is subject.

“Resolution Authority”: an EEA Resolution Authority or, with respect to any UK Financial Institution, a UK Resolution Authority.

“Responsible Officer”: the chief executive officer, the president, any executive or senior vice president or vice president, financial officer, treasurer or controller of the Company.

“Revolving Credit Loans”: as defined in subsection 2.1(a).

“Revolving Credit Note”: as defined in subsection 2.3(e).

“S&P”: S&P Global Inc., and any successor thereto.

“Sanctioned Person”: at any time, (a) any Person listed in any Sanctions-related list of designated Persons maintained by the Office of Foreign Assets Control of the U.S. Department of the Treasury, the U.S. Department of State, or by the United Nations Security Council, the European Union, any European Union member state, HM Treasury of the United Kingdom, or other relevant sanctions authority, (b) any Person who is a national or resident in an Embargoed Jurisdiction or (c) any Person owned or controlled by any such Person or Persons described in the foregoing, (b).

“Sanctions”: all economic or financial sanctions or trade embargoes imposed, administered or enforced from time to time by a government, including those administered by the Office of Foreign Assets Control of the U.S. Department of the Treasury or the U.S. Department of State, or (b) the United Nations Security Council, the European Union, any

European Union member state, HM Treasury of the United Kingdom, or other relevant sanctions authority.

“Significant Subsidiary”: at any particular time, any Subsidiary of the Company that would be a “significant subsidiary” within the meaning of Rule 1-02 under Regulation S-X promulgated by the Securities and Exchange Commission.

“Single Employer Plan”: any Plan which is not a Multiemployer Plan.

“SOFR”: a rate per annum equal to the secured overnight financing rate as administered by the SOFR Administrator.

“SOFR Administrator”: the NYFRB (or a successor administrator of the secured overnight financing rate).

“SOFR Administrator’s Website”: the website of the NYFRB, currently at <http://www.newyorkfed.org>, or any successor website of the NYFRB, for the secured overnight financing rate identified as such by the SOFR Administrator from time to time.

“SOFR Determination Date”: as defined in the definition of “Daily Simple SOFR”.

“SOFR Rate Day”: as defined in the definition of “Daily Simple SOFR”.

“Subsidiary”: as to any Person, a corporation, partnership, limited liability company or other entity of which shares or ownership interests having ordinary voting power (other than stock or such other ownership interests having such power only by happening of a contingency) to elect a majority of the board of directors or other managers of such corporation, partnership, limited liability company or other entity are at the time owned, directly or indirectly through one or more intermediaries, or both, by such Person. Unless otherwise specified, references to a “Subsidiary” or to “Subsidiaries” in this Agreement shall refer to a Subsidiary or Subsidiaries of the Company.

“Syndication Agent”: BofA.

“Synthetic Lease”: each arrangement, however described, under which the obligor accounts for its interest in the property covered by the lease under GAAP as lessee of a lease which is not a capital lease under GAAP and accounts for its interest in the property covered by the lease for income tax purposes as the owner.

“Synthetic Lease Obligation”: as to any Person with respect to any Synthetic Lease at any time of determination, the amount of the liability of such Person in respect of such Synthetic Lease that would (if such lease was required to be classified and accounted for as a capital lease) be required to be capitalized on the balance sheet of such Person in accordance with GAAP.

“Taxes”: as defined in subsection 2.15(a).

“Term Benchmark”: when used in reference to any Loan, refers to whether such Loan, or the Loans comprising such Loan, are bearing interest at a rate determined by reference to the Adjusted Term SOFR Rate.

“Term Benchmark Loans”: Revolving Credit Loans hereunder at such time as they are made and/or being maintained or refinanced based upon the Adjusted Term SOFR Rate.

“Term Benchmark Tranche”: the collective reference to Term Benchmark Loans having the same Interest Period (whether such Loans are made on the same day).

“Term SOFR Determination Day”: as defined in the definition of “Term SOFR Reference Rate”.

“Term SOFR Rate”: with respect to any borrowing of Term Benchmark Loans and for any tenor comparable to the applicable Interest Period, the Term SOFR Reference Rate at approximately 5:00 a.m., Chicago time, two U.S. Government Securities Business Days prior to the commencement of such tenor comparable to the applicable Interest Period, as such rate is published by the CME Term SOFR Administrator.

“Term SOFR Reference Rate”: for any day and time (such day, the “Term SOFR Determination Day”), with respect to any borrowing of Term Benchmark Loans denominated in Dollars and for any tenor comparable to the applicable Interest Period, the rate per annum payable by the Borrower to the Lender as the forward-looking term rate based on SOFR. If by 5:00 pm (New York City time) on such Term SOFR Determination Day, the Term SOFR Reference Rate for the applicable tenor has not been published by the CME Term SOFR Administrator and a Benchmark Replacement has not occurred, then the Term SOFR Reference Rate for such Term SOFR Determination Day will be the Term SOFR Reference Rate as published in respect of the first preceding U.S. Government Securities Business Day for which such Term SOFR Reference Rate has been published by the CME Term SOFR Administrator, so long as such first preceding Business Day is not more than five (5) Business Days prior to the Term SOFR Determination Day.

“Term-Out Option”: as defined in subsection 2.22.

“Term-Out Premium”: as defined in subsection 2.22.

“Termination Date”: the Commitment Termination Date or, if the Termination Date is extended by the Company’s exercise of its Term-Out Option, the first anniversary of the Commitment Termination Date (or if such date is not a Business Day, the immediately preceding Business Day).

“Total Consolidated Indebtedness”: at any time, the aggregate outstanding principal amount of Indebtedness of the Company and its Subsidiaries of the kinds referred to in clauses (a), (c) and (d) of the definition of “Indebtedness”, or of the kinds referred to in clause (e) thereof, to the extent relating to Indebtedness of the kinds referred to in clauses (a), (c) and (d) thereof, all computed in accordance with GAAP. Notwithstanding the foregoing, it is agreed that items listed on Schedule V shall not constitute Total Consolidated Indebtedness.

“Transfer Effective Date”: with respect to an Assignment and Assumption, the effective date of such Assignment and Assumption.

“Transferee”: as defined in subsection 10.6(g).

“Type”: as to any Revolving Credit Loan, its nature as an Alternate Base Rate Loan or Term Benchmark Loan.

“UK Financial Institution”: any BRRD Undertaking (as such term is defined under the PRA Rulebook (as amended from time to time) promulgated by the United Kingdom Prudential Regulation Authority) or any Person falling within IFPRU 11.6 of the FCA Handbook (as amended from time to time) promulgated by the United Kingdom Financial Conduct Authority, which includes certain credit institutions and certain affiliates of such credit institutions or investment firms.

“UK Resolution Authority”: the Bank of England or any other public administrative authority having responsibility for the supervision of any UK Financial Institution.

“Unadjusted Benchmark Replacement”: the applicable Benchmark Replacement excluding the related Benchmark Replacement Adjustment.

“U.S. Government Securities Business Day”: any day except for (i) a Saturday, (ii) a Sunday or (iii) a day on which the New York Stock Exchange and Financial Markets Association recommends that the fixed income departments of its members be closed for the entire day for purposes of trading United States government securities.

“U.S. Tax Compliance Certificate”: as defined in subsection 2.15(c)(ii)(C).

“Voting Stock”: with respect to any Person, Capital Stock issued by such Person the holders of which are ordinarily, in the absence of contingencies, entitled to vote for the election of directors (or persons performing similar functions) of such Person, even if the right to vote is suspended by the happening of such contingency.

“Waterside Building”: the real property located at 101 East Main Street, Louisville, Kentucky 40202, including the building and the insurance claim processing operations of the Company.

“Waterside Garage”: the parking garage of the Company located at 201 North Brook Street, Louisville, Kentucky 40202.

“Write-Down and Conversion Powers”: (a) with respect to any EEA Resolution Authority, the write-down and conversion powers of that EEA Resolution Authority from time to time under the Bail-In Legislation for the applicable EEA Member Country, which write-down and conversion powers are described in the EU Bail-In Legislation Schedule, and (b) with respect to the United Kingdom, any powers of the applicable UK Resolution Authority under the Bail-In Legislation to cancel, reduce, modify or change the form of a liability of any UK Financial Institution or to provide that any such contract or instrument is to have effect as if a right had been exercised under that instrument under which that liability arises, to convert all or part of that liability into shares, securities or obligations of that Person or to provide that any such contract or instrument is to have effect as if a right had been exercised under that instrument.

it or to suspend any obligation in respect of that liability or any of the powers under that Bail-In Legislation that are related to or arise from those powers.

1.2 Other Definitional Provisions.

(a) Unless otherwise specified therein, all terms defined in this Agreement shall have the defined meanings when used in any certificate or other document made or delivered pursuant hereto.

(b) As used herein and in the other Loan Documents, and any certificate or other document made or delivered pursuant to the Agreement, accounting terms relating to the Company and its Subsidiaries not defined in subsection 1.1 and accounting terms partly defined in subsection 1.1 to the extent not defined, shall have the respective meanings given to them under GAAP; provided that, if the Company notifies the Agent that it requests an amendment to any provision hereof to eliminate the effect of any change occurring after the date hereof in GAAP or in the application thereof on the operation of such provision (or if the Agent notifies the Company that the Required Banks request an amendment to any provision hereof for such purpose), regardless of whether any such notice is given before or after such change in GAAP or in the application thereof, the Required Banks and the Company shall negotiate in good faith to amend such provision to preserve the original intent thereof in light of such change, and such provision shall be interpreted on the basis of GAAP as in effect and applied immediately before such change shall have been made, or such notice shall have been withdrawn or such provision amended in accordance herewith; provided further that all terms of an accounting standard or principle of accounting nature used herein shall be construed, and all computations of amounts and ratios referred to herein shall be made, without giving effect to any election under Accounting Standards Codification (“ASC”) 825-10-25 (or any other Accounting Standards Codification or Financial Accounting Standard having a similar result or effect) to value any Indebtedness or other liabilities of the Company or any Subsidiary at “fair value” as determined therein and (ii) any treatment of Indebtedness in respect of convertible debt instruments under ASC 470-20 (or any other Accounting Standards Codification or Financial Accounting Standard having a similar result or effect) to value any such Indebtedness in a reduced or bifurcated amount as described therein, and such Indebtedness shall at all times be valued at the full stated principal amount thereof.

(c) The words “hereof”, “herein” and “hereunder” and words of similar import when used in this Agreement shall refer to the Agreement as a whole and not to any particular provision of this Agreement, and Section, subsection, Schedule and Exhibit references are to this Agreement unless otherwise specified.

(d) The meanings given to terms defined herein shall be equally applicable to both the singular and plural forms of such terms.

(e) Unless the context requires otherwise, (i) any definition of or reference to any agreement, instrument or other document shall be construed as referring to such agreement, instrument or other document as from time to time amended, restated, supplemented, extended, modified, restated or otherwise modified (subject to any restrictions on such amendments, supplements or modifications set forth herein or in any other agreement), and references herein to any law, rule, regulation or Requirement of Law shall include all statutory and regulatory provisions consolidated, amended, replaced, replacing, supplementing, or interpreting such law, rule, regulation or Requirement of Law and (iii) any reference herein to any law, rule, regulation or Requirement of Law shall be construed to

include such Person's successors and permitted assigns and, in the case of any Governmental Authority, any other Governmental Authority that has succeeded to the relevant functions thereof.

1.3 Interest Rates. The interest rate on a Loan denominated in Dollars may be derived from an interest rate benchmark that is discontinued or is, or may in the future become, the subject of regulatory reform. Upon the occurrence of a Benchmark Transition Event, the Agreement provides a mechanism for determining an alternative rate of interest. The Agent does not warrant or accept any responsibility for, and is not liable with respect to, the administration, submission, performance or any other matter related to any interest rate used in this Agreement with respect to any alternative or successor rate thereto, or replacement rate thereof, including without limitation, whether the composition of any such alternative, successor or replacement reference rate will be similar to, or produce the same value or economic equivalence as the interest rate being replaced or have the same volume or liquidity as did any existing interest rate prior to its discontinuance or unavailability. The Company and its affiliates and/or other related entities may engage in transactions that affect the calculation of any interest rate used in this Agreement, including any alternative, successor or alternative rate (including any Benchmark Replacement) and/or any relevant adjustments thereto, in each case that is not adverse to the Company. The Agent may select information sources or services in its reasonable discretion to ascertain any interest rate used in the Agreement, any component thereof, or rates referenced in the definition thereof, in each case pursuant to the terms of this Agreement. The Agent shall not be liable to the Company, any Bank or any other Person or entity for damages of any kind, including direct or indirect, special, punitive, consequential damages, costs, losses or expenses (whether in tort, contract or otherwise and whether at law or in equity), for any error in the determination of any such rate (or component thereof) provided by any such information source or service.

1.4 Divisions. For all purposes under this Agreement, in connection with any division or plan of division under Delaware law or any comparable event under a different jurisdiction's laws: (a) if any asset, right, obligation or liability of any Person becomes the asset, right, obligation or liability of a different Person, then it shall be deemed to have been transferred from the original Person to the subsequent Person, and if a new Person comes into existence, such new Person shall be deemed to have been organized and acquired on the first date of its existence for equity interests at such time.

SECTION 2. AMOUNT AND TERMS OF LOANS

2.1 Revolving Credit Loans.

(a) Subject to the terms and conditions hereof, each Bank severally agrees to make loans ("Revolving Credit Loans") to the Company from time to time during the Commitment Period in an aggregate principal amount at any one time outstanding which does not exceed the Commitment of such Bank; provided that the Aggregate Outstanding Extensions of Credit of all Banks shall not at any time exceed the aggregate amount of the Commitments. During the Commitment Period the Company may use the Commitments by borrowing, prepaying the Loans in whole or in part, and reborrowing, all in accordance with the terms and conditions hereof. The Revolving Credit Loans may be Benchmark Loans, (ii) Alternate

Base Rate Loans or (iii) a combination thereof, as determined by the Company and notified to the Agent in accordance with subsection 10.6(e). Term Benchmark Loans and Alternate Base Rate Loans shall be made and maintained by each Bank at its applicable lending rate.

(b) The Company may borrow under the Commitments on any Business Day; provided that the Company shall give notice to the Agent (i) prior to 1:00 P.M., New York City time, three Business Days prior to the requested Borrowing Date, in the case of Term Benchmark Loans, and (ii) prior to 1:00 P.M., New York City time, on the requested Borrowing Date, in the case of Alternate Base Rate Loans), specifying (A) the amount to be borrowed, (B) the requested Borrowing Date (C) whether the borrowing is to be of Term Benchmark Loans, Alternate Base Rate Loans, or a combination thereof, and (D) if the borrowing is to be entirely or partly of Term Benchmark Loans, the length of the Interest Period. The borrowing pursuant to the Commitments shall be in an aggregate principal amount equal to the lesser of (i) \$10,000,000 or a whole number multiple of \$1,000,000 in excess thereof and (ii) the then aggregate Available Commitments for all Banks. Upon receipt of such notice from the Company, the Agent shall promptly notify each Bank thereof. Each Bank will make the amount of its pro rata share of each borrowing available to the account of the Company at the office of the Agent set forth in subsection 10.2 prior to 2:00 P.M. (or in the case of a same day borrowing, 3:00 P.M.), New York City time, on the Borrowing Date requested by the Company in funds immediately available to the Company. The proceeds of all such Revolving Credit Loans will then be promptly made available to the Company by the Agent at such office of the Agent to the account of the Company on the books of such office with the aggregate of the amounts made available to the Agent by the Company.

2.2 [Reserved].

2.3 Repayment of Loans; Evidence of Debt.

(a) The Company hereby unconditionally promises to pay to the Agent for the account of each Bank the then unpaid principal of each Revolving Credit Loan of such Bank on the Commitment Termination Date (or such earlier date on which the Loans become due pursuant to Section 8, or, if the Term-Out Option is exercised, such later date pursuant to Section 2.22). The Company hereby further promises to pay interest on the unpaid principal amount of the Loans from time to time outstanding from the date hereof until payment in full thereof, at the rate of interest set forth in subsection 2.8, per annum, and on the dates, set forth in subsection 2.8.

(b) Each Bank shall maintain in accordance with its usual practice an account or accounts evidencing indebtedness of the Company to the Bank resulting from each Loan of such Bank from time to time, including the amounts of principal and interest payable and paid to such Bank from time to time under this Agreement.

(c) The Agent shall maintain the Register pursuant to subsection 10.6(e), and a subaccount therein for each Bank, in which shall be recorded (i) the amount of each Revolving Credit Loan made hereunder, the Type thereof and each Interest Period applicable thereto, (ii) any principal or interest due and payable or to become due and payable from the Company to each Bank hereunder and (iii) both the amount of principal and interest received by the Agent hereunder from the Company and each Bank's share thereof.

(d) The accounts of each Bank maintained pursuant to subsection 2.3(b) shall, to the extent permitted by applicable law, be conclusive evidence, absent manifest error, of the amounts of the obligations of the Company therein recorded; provided, however, that the failure of any Bank or the Agent to maintain any such account, or any error therein, shall not in any manner affect the obligation of the Company to repay (with applicable interest) to the Company by such Bank in accordance with the terms of this Agreement.

(e) The Company agrees that, upon the request to the Agent by any Bank, the Company will execute and deliver to the Bank a promissory note of the Company evidencing the Revolving Credit Loans of such Bank, substantially in the form of Exhibit A with appropriate changes as to payee, date and principal amount (a “Revolving Credit Note”).

2.4 Fees.

(a) During the Commitment Period, the Company agrees to pay to the Agent, for the account of each Bank, on the fifteenth day following the last day of each fiscal quarter and on the Commitment Termination Date (and, if the Term-Out Option shall have been exercised, on the date of termination of the Commitment), a facility fee in respect of the average daily amount of the Commitment of such Bank (and, following the termination of the Commitment of such Bank, including for the avoidance of doubt if the Term Out-Option is exercised, on the sum of the Loans of such Bank) during the Commitment Period. Such fee shall be computed at the applicable rate per annum set forth in the Pricing Grid.

(b) The Company agrees to pay to each of the Agent and the Primary Lead Arrangers (and as applicable their Affiliates) the amounts, and on the dates, agreed to by the Company and the Primary Lead Arrangers (and as applicable their Affiliates). The Agent shall pay to the Banks their respective portions of upfront fees paid by the Company to the Agent, as agreed between the Agent and the Banks.

2.5 Termination or Reduction of Commitments. The Company shall have the right, upon not less than three Business Days' notice to the Agent, to terminate the Commitments or, from time to time, to reduce ratably the amount of the Commitments; provided that no such reduction shall be permitted if, after giving effect thereto and to any prepayments of the Revolving Credit Loans made on the effective date of such reduction, the then outstanding principal amount of the Loans would exceed the amount of the Commitments then in effect. Any such reduction shall be limited to the lesser of (x) \$10,000,000 or a whole multiple of \$1,000,000 in excess thereof and (y) the aggregate amount of Commitments then in effect, and shall reduce permanently the amount of the Commitments then in effect.

2.6 Optional Prepayments. The Company may at any time and from time to time, prepay the Revolving Credit Loans, in whole or in part, without premium or penalty (subject to the provisions of subsection 2.16), upon at least three Business Days' notice to the Agent in the case of Benchmark Loans and one Business Day's notice to the Agent in the case of Alternate Base Rate Loans, specifying the date and amount of prepayment and whether the prepayment is of Term Benchmark Loans or Alternate Base Rate Loans or a combination thereof, and if of a combination, the amount of prepayment allocable to each; provided that such

notice may be revocable and/or conditioned on the occurrence of a specified event. Upon receipt of such notice the Agent shall promptly notify each Bank thereof. If such notice is given, the payment amount specified in such notice shall be due and payable on the date specified in such notice, plus accrued interest to such date on the amount prepaid. Partial prepayments shall be in an aggregate principal amount of the lesser of (x) a whole multiple thereof, and (y) the aggregate principal amount of Loans then outstanding, and may only be made if, after giving effect thereto, subsection 2.7(c) shall not have been contravened.

2.7 Conversion Options; Minimum Amount of Loans.

(a) The Company may elect from time to time to convert Term Benchmark Loans to Alternate Base Rate Loans by giving the Agent at least two Business Days' prior irrevocable notice of such election (given before 10:00 A.M., New York City time, on the date on which such notice is required); provided that any such conversion of Term Benchmark Loans shall only be made on the last day of an Interest Period with respect thereto. The Company may elect from time to time to convert Alternate Base Rate Loans to Term Benchmark Loans by giving the Agent at least two Business Days' prior irrevocable notice of such election (given before 1:00 P.M., New York City time, on the date on which such notice is required). If, after giving effect to such notice, the Agent shall promptly notify each Bank thereof. Promptly following the date on which such conversion is being made, the Company shall take such action as is necessary to transfer its portion of such Revolving Credit Loans to its applicable lending office. All or any part of such Term Benchmark Loans and Alternate Base Rate Loans may be converted as provided herein; provided that, unless the Required Banks otherwise agree, no Revolving Credit Loan may be converted into a Term Benchmark Loan when any Event of Default has occurred and is continuing. Any such conversions shall be in an aggregate principal amount of \$5,000,000 or a whole multiple thereof and (iii) any such conversion may only be made if, after giving effect thereto, subsection 2.7(c) shall not have been contravened.

(b) Any Term Benchmark Loans may be continued as such upon the expiration of an Interest Period with respect thereto. The Company shall give the Agent notice of such election in accordance with the notice provisions contained in subsection 2.7(a); provided that, unless the Required Banks otherwise agree, no Term Benchmark Loan may be continued as such when any Event of Default has occurred and is continuing, but shall be automatically converted to an Alternate Base Rate Loan on the last day of the then current Interest Period with respect thereto. The Agent shall notify the Banks promptly that such conversion contemplated by this subsection 2.7(b) will occur.

(c) All borrowings, conversions, payments, prepayments and selection of Interest Periods hereunder shall be in such amounts as the Company may elect pursuant to such elections so that, after giving effect thereto, the aggregate principal amount of the Loans comprising any Term Benchmark Tranche shall not be less than \$10,000,000. At no time shall there be more than fifteen Term Benchmark Tranches.

2.8 Interest Rate and Payment Dates for Loans.

(a) The Term Benchmark Loans comprising each Term Benchmark Tranche shall bear interest for each day during each Interest Period with respect thereto on the unpaid principal amount thereof at a rate per annum equal to the Adjusted Term SOFR Rate plus the Applicable Margin.

(b) Alternate Base Rate Loans shall bear interest for each day from and including the Borrowing Date thereof on the amount thereof at a rate per annum equal to the Alternate Base Rate plus the Applicable Margin.

(c) [Reserved.]

(d) If all or a portion of (i) the principal amount of any Loans, (ii) any interest payable thereon or (iii) any fee or other amount hereunder shall not be paid when due (whether at the stated maturity, by acceleration or otherwise), such overdue amount shall bear interest at a rate per annum which is 2% above the Alternate Base Rate from the date of such non-payment until paid in full (after as well as before judgment). Any portion of the principal amount of any Loans shall not be paid when due (whether at stated maturity, by acceleration or otherwise) if the Benchmark Loan shall, unless the Required Banks otherwise agree, be converted to an Alternate Base Rate Loan at the end of the last Business Day with respect thereto.

(e) Interest shall be payable in arrears on each Interest Payment Date.

2.9 Computation of Interest and Fees.

(a) Interest in respect of Alternate Base Rate Loans shall be calculated on the basis of (i) 365-day (or 366-day, as the case may be) for the actual days elapsed when such Alternate Base Rate Loans are based on the Prime Rate and (ii) a 360-day year for the actual days elapsed when based on the Term SOFR Rate or the Federal Funds Effective Rate (or NYFRB Rate). Interest in respect of Term Benchmark Loans shall be calculated on the basis of a 360-day year for the actual days elapsed. The Agent shall as soon as practicable notify the Company and the Banks of the determination of the Adjusted Term SOFR Rate. Any change in the interest rate on a Revolving Credit Loan resulting from a change in the Alternate Base Rate, the Adjusted Term SOFR Rate or Term SOFR Rate or the Applicable Margin shall become effective as of the opening of the first Business Day on which such change in the Alternate Base Rate, the Adjusted Term SOFR Rate or the Term SOFR Rate is announced or such change is otherwise made, or changes as provided herein, as the case may be. The Agent shall as soon as practicable notify the Company and the Banks of the effective date and amount of each such change.

(b) Each determination of an interest rate by the Agent pursuant to any provision of this Agreement shall be conclusive and binding on the Company and the Banks in the absence of manifest error. The Agent shall, at the request of the Company, deliver to the Company a copy of the quotations used by the Agent in determining any interest rate pursuant to subsection 2.8.

(c) Facility fees shall be computed on the basis of a 365-day year for the actual days elapsed.

2.10 Inability to Determine Interest Rate.

(a) Subject to clauses (b) through (f) of this subsection 2.10, in the event that:

(i) the Agent shall have determined in its reasonable judgment (which determination shall be conclusive and binding on the Company) that adequate and reasonable means do not exist for ascertaining the Adjusted Term SOFR Rate or the Term SOFR Rate,

SOFR Rate (including because the Term SOFR Reference Rate is not available or published on a current basis) for any request for a new interest election request or

(ii) the Agent shall have received notice prior to the first day of such Interest Period from Banks constituting the Required Banks that the interest rate determined pursuant to subsection 2.8(a) for such Interest Period does not accurately reflect the cost to such Banks (as conclusively certified by such Banks) of making or maintaining their affected Loans during such Interest Period;

then the Agent shall give notice thereof to the Company and the Banks by telephone, telecopy or electronic mail as promptly as practicable and, until (x) the Agent notifies the Company and the Banks that the circumstances giving rise to such notice no longer exist with respect to such Benchmark and (y) the Company delivers a new interest election request in accordance with the terms of Section 2.7, any interest election request requests the conversion of any borrowing to, or continuation of any borrowing as, a borrowing of Term Benchmark Loans and any borrowing of Term Benchmark Loans shall instead be deemed to be an interest election request or a request for a borrowing, as a borrowing of Alternate Base Rate Loans; provided that if the circumstances giving rise to such notice affect only one Type of borrowing, Types of borrowings shall be permitted. Furthermore, if any Term Benchmark Loan is outstanding on the date of the Company's request for a new interest election request from the Agent referred to in this Section 2.10(a) with respect to the Adjusted Term SOFR Rate, then until (x) the Agent notifies the Banks that the circumstances giving rise to such notice no longer exist with respect to the Adjusted Term SOFR Rate and (y) the Company delivers a new interest election request in accordance with the terms of Section 2.7, any Term Benchmark Loan shall on the last day of the Interest Period applicable to such Loan (or the next succeeding Business Day if such day is not a Business Day), be converted by the Agent to, and shall thereafter be an Alternate Base Rate Loan on such day.

(b) Notwithstanding anything to the contrary herein or in any other Loan Document, if a Benchmark Transition Event occurs, and a Benchmark Replacement Date have occurred prior to the Reference Time in respect of any setting of the then-current Benchmark Rate, such Benchmark Replacement is determined in accordance with clause (1) of the definition of "Benchmark Replacement" for such Benchmark Rate, such Benchmark Replacement will replace such Benchmark for all purposes hereunder and under any other Loan Document and subsequent Benchmark settings without any amendment to, or further action or consent of any other party to, such Benchmark Replacement and (y) if a Benchmark Replacement is determined in accordance with clause (2) of the definition of "Benchmark Replacement" for such Benchmark Replacement Date, such Benchmark Replacement will replace such Benchmark for all purposes hereunder and under any other Loan Document in respect of any Benchmark setting at or after 5:00 P.M., New York City time, on the fifth Business Day after the date of such Benchmark Replacement is provided to the Banks without any amendment to, or further action or consent of any other party to, such Benchmark Replacement or any other Loan Document so long as the Agent has not received, by such time, written notice of objection to such Benchmark Replacement from the Banks comprising the Required Banks.

(c) Notwithstanding anything to the contrary herein or in any other Loan Document, the Agent will have the right to make and implement Benchmark Replacement Conforming Changes from time to time and, notwithstanding anything to the contrary herein or in any other

Document, any amendments implementing such Benchmark Replacement Conforming Changes will become effective without any consent of any other party to this Agreement or any other Loan Document.

(d) The Agent will promptly notify the Company and the Banks of (i) any occurrence of a Benchmark Transition, (ii) the implementation of any Benchmark Replacement, (iii) the effectiveness of any Benchmark Replacement Conforming Changes, (iv) the reinstatement of any tenor of a Benchmark pursuant to clause (e) below and (v) the commencement or conclusion of any Benchmark Unavailability Period. Any determination, decision or election that may be made by the Agent or, if applicable, any Bank (or group of Banks) pursuant to subsection 2.10, including any determination with respect to a tenor, rate or adjustment or of the occurrence or non-occurrence of an event or date and any decision to take or refrain from taking any action or any selection, will be conclusive and binding absent manifest error made in its or their sole discretion and without consent from any other party to this Agreement or any other Loan Document, except as expressly required pursuant to this subsection 2.10.

(e) Notwithstanding anything to the contrary herein or in any other Loan Document, at any time (including in connection with the implementation of a Benchmark Replacement), (i) if the then-current Benchmark is a term rate (including the Term SOFR Rate) and the then-current tenor for such Benchmark is not displayed on a screen or other information service that publishes such rate from time to time as selected by the Agent in its or their reasonable discretion or (B) the regulatory supervisor for the administrator of such Benchmark has provided a public statement of information announcing that any tenor for such Benchmark is or will be no longer representative, then the Agent may modify the definition of "Interest Period" for any Benchmark settings at or after such time to remove such unavailable or non-representative tenor and (ii) if a tenor for such Benchmark pursuant to clause (i) above either (A) is subsequently displayed on a screen or information service for a Benchmark (including a Benchmark Replacement) or (B) is not, or is no longer, subject to an announcement that it is or will no longer be representative for a Benchmark (including a Benchmark Replacement), then the Agent may modify the definition of "Interest Period" for all Benchmark settings at or after such time to remove such previously removed tenor.

(f) Upon the Company's receipt of notice of the commencement of a Benchmark Unavailability Period, the Company may, at its option, request for a borrowing of Term Benchmark Loans, conversion to or continuation of Term Benchmark Loans to be made, converted to or continued on any Benchmark Unavailability Period and, failing that, the Company will be deemed to have converted any such request into a request for a borrowing of or conversion to Alternate Base Rate Loans. During any Benchmark Unavailability Period or at any time that a tenor for the then-current Benchmark is not an Available Tenor, the component of the Alternate Base Rate based upon the then-current Benchmark or such tenor for such Benchmark, if applicable, will not be used in any determination of the Alternate Base Rate. Furthermore, if any Term Benchmark Loan is outstanding on the date of the Company's receipt of notice of the commencement of a Benchmark Unavailability Period, then until such time as a Benchmark Replacement is implemented pursuant to this subsection 2.10, then on the last day of the Interest Period applicable to such Loan (or the next succeeding Business Day if such day is not a Business Day), such Loan shall be converted by the Agent to, and shall constitute, an Alternate Base Rate Loan.

2.11 Pro Rata Borrowings and Payments.

(a) Each borrowing by the Company of Revolving Credit Loans shall be made ratably from the Banks in accordance with their Commitment Percentages.

(b) Whenever any payment received by the Agent under this Agreement is insufficient to pay in full all amounts then due to the Agent and the Banks under this Agreement, and the Agent has not received a Payment Sharing Notice (or if the Agent has received a Payment Sharing Notice but the Event of Default specified in such Payment Sharing Notice has been cured or waived), such payment shall be applied by the Agent and the Banks in the following order: first, to the payment of fees and expenses due and payable to the Agent in connection with this Agreement; second, to the payment of all expenses due and payable under subsection 10.5(b), ratably among the Banks in accordance with the aggregate amount of such payments owed to each such Bank; third, to the payment of fees due and payable under subsection 2.4, ratably among the Banks in accordance with their Commitment Percentages; fourth, to the payment of interest then due on the Loans, ratably among the Banks in accordance with the aggregate amount of interest owed to each such Bank; and fifth, to the payment of the principal amount of the Loans which is then due and payable, ratably among the Banks in accordance with the aggregate principal amount of the Loans then due and payable to each such Bank.

(c) After the Agent has received a Payment Sharing Notice which remains in effect, all payments received by the Agent under this Agreement shall be distributed and applied by the Agent and the Banks in the following order: first, to the payment of all amounts then due to the Agent under subsections first through third of the foregoing paragraph (b), in the order set forth therein; and second, to the payment of the interest accrued on the Loans, regardless of whether any such amount is then due and payable, ratably among the Banks in accordance with the aggregate amount of interest then due and payable, plus the accrued interest plus the aggregate principal amount owed to each such Bank.

(d) All payments (including prepayments) to be made by the Company on account of principal, interest and fees shall be made by set-off or counterclaim and shall be made to the Agent, for the account of the Banks, at the Agent's office set forth in subsection 10.2 of the United States of America and in immediately available funds. The Agent shall distribute such payments to the Banks promptly in immediately available funds as received. If any payment hereunder becomes due and payable on a day other than a Business Day, such payment shall be payable on the next succeeding Business Day, and, with respect to payments of principal, interest thereon shall be payable at the then applicable rate during such period.

(e) Unless the Agent shall have been notified in writing by any Bank prior to a Borrowing Date that such Bank will not make available to the Company an amount which would constitute its Commitment Percentage of the borrowing of Revolving Credit Loans on such date available to the Agent, the Agent shall assume that such Bank has made such amount available to the Agent on such Borrowing Date, and the Agent may, in reliance upon such assumption, make available to the Company a corresponding amount. If such amount is made available to the Agent on a date after such Borrowing Date, the Agent shall pay to the Agent on demand an amount equal to the product of (i) the daily average Federal Funds Effective Rate during such period, times (ii) the amount of such Bank's Commitment Percentage of such borrowing, times (iii) a fraction the numerator of which is the number of days that elapse from and including such Borrowing Date to the date on which such Bank's Commitment Percentage of such borrowing is made available to the Agent.

shall have become immediately available to the Agent and the denominator of which is 360. A certificate of the Agent submitted to the Agent in respect to any amounts owing under this subsection 2.11(e) shall be conclusive, absent manifest error. If such Bank's Commitment to borrow is not in fact made available to the Agent by such Bank within three Business Days of such Borrowing Date, the Agent shall recover such amount with interest thereon at the rate per annum applicable to Alternate Base Rate Loans hereunder, on demand, from such Bank.

(f) If, and for so long as, any Bank shall fail to make any payment required to be made by it pursuant to subsection 2.11(e), the Agent may, in its discretion and notwithstanding any contrary provision hereof, apply any amounts thereafter received by the Agent from such Bank for the benefit of the Agent to satisfy such Bank's obligations to it under such subsection until all such unsatisfied obligations are paid.

2.12 Illegality. Notwithstanding any other provisions herein, if after the date hereof the adoption of or any change in any Requirement of Law or in the interpretation or application thereof shall make it unlawful for any Bank to make or maintain Term Benchmark Loans or to convert Alternate Base Rate Loans to Term Benchmark Loans, (a) the Bank shall, within 30 Business Days after it becomes aware of such fact, notify the Company, through the Agent, of such fact; (b) the commitment of such Bank hereunder to make Term Benchmark Loans or convert Alternate Base Rate Loans to Term Benchmark Loans shall forthwith be cancelled and (c) such Bank's Revolving Credit Loans then outstanding as Term Benchmark Loans, if any, shall be converted to Alternate Base Rate Loans on the respective last days of the then current Interest Periods for such Revolving Credit Loans or within the period as required by law. Each Bank shall take such action as may be reasonably available to it without material legal or financial consequence (including changing its lending office) to prevent the adoption of or any change in any such Requirement of Law from becoming effective.

2.13 Requirements of Law. If after the date hereof the adoption of or any change in any Requirement of Law (including any Requirement of Law, regulations issued under or implementing any existing law) or in the interpretation or application thereof or compliance by any Bank with any such Requirement of Law or directive (whether or not having the force of law) after the date hereof from any central bank or other Governmental Authority, (a)

(a) shall subject any Bank to any tax of any kind whatsoever with respect to this Agreement or any Term Benchmark Loan, or any change the basis of taxation of payments to such Bank of principal, facility fee, interest or any other amount payable hereunder in connection with this Agreement (except for Taxes covered by subsection 2.15 and taxes described in clauses (i) through (iv) of subsection 2.15(a))

(b) shall impose, modify or hold applicable any reserve, special deposit, compulsory loan, insurance charge or similar requirement on assets held by, or deposits or other liabilities in or for the account of, advances or loans by, or other credit extended by, or any other amount payable by, any office of such Bank which are not otherwise included in the determination of the Adjusted Term SOFR Rate hereunder

(c) shall impose on such Bank any other condition;

and the result of any of the foregoing is to increase the cost to such Bank, by any amount which such Bank reasonably deems to be necessary for renewing or maintaining advances or extensions of credit or to reduce any amount receivable hereunder, in each case, in respect of such case, the Company shall after submission by such Bank, through the Agent, to the Company of a written request therefor (such request shall be conclusive and binding upon all parties in the absence of manifest error, shall include details reasonably sufficient to establish the basis for such additional cost or reduced amount receivable and shall be submitted to the Company within 30 Business Days after it becomes aware of such fact), the Company shall, within 30 days of such written request, pay such Bank for such additional cost or reduced amount receivable; provided, notwithstanding anything contained in this subsection 2.13 to the contrary, such Bank shall not be entitled to receive any amounts pursuant to subsection 2.13 that it is also entitled to pursuant to subsection 2.15(a). If a Bank becomes entitled to claim any additional amounts pursuant to subsection 2.13, it shall, within 30 Business Days after it becomes aware of such fact, notify the Company, through the Agent, of the fact which it has become so entitled. A certificate as to any additional amounts payable pursuant to the foregoing sentence submitted by such Bank through the Agent, to the Company shall be conclusive and binding in the absence of manifest error. Each Bank shall take such action as may be available to it without legal or financial disadvantage (including changing its lending office) to prevent any such Requirement of Law from becoming applicable to it. This covenant shall survive the termination of this Agreement and payment of all other amounts payable hereunder.

2.14 Capital Adequacy.

(a) If any Bank shall have determined that after the date hereof the adoption of or any change in any Requirement of Law (including any rules or regulations issued under or implementing any existing law) regarding capital adequacy or liquidity or in the interpretation or application of or compliance by such Bank or any corporation controlling such Bank with any request or directive after the date hereof regarding capital adequacy or liquidity (whether or not having the force of law) from any central bank or Governmental Authority, does or shall have the effect of reducing the return on such Bank's or such corporation's capital as a consequence of its obligations hereunder to a level below that which such Bank or such corporation could have achieved but for such adoption, change or compliance (taking into consideration such Bank's or such corporation's obligations with respect to capital adequacy or liquidity) by an amount which is reasonably deemed by such Bank to be material, then from time to time thereafter, by such Bank, through the Agent, to the Company of a written request therefor (such request, which shall be conclusive and binding in the absence of manifest error, shall include details reasonably sufficient to establish the basis for such additional amounts payable and shall be submitted to the Company within 30 Business Days after it becomes aware of such fact), the Company shall, within 15 Business Days of such written request, pay to such Bank such additional amount or amounts as will compensate such Bank for such reduction. The agreements in this subsection shall survive the termination of this Agreement and payment of the Loans and all other amounts payable hereunder.

(b) Notwithstanding anything herein to the contrary (i) all requests, rules, guidelines, requirements and directives promulgated by the Federal Reserve for International Settlements, the Basel Committee on Banking Supervision (or any successor or similar authority) or by United States or foreign regulatory authorities, in each case pursuant to Basel III, and (ii) the Dodd-Frank

Wall Street Reform and Consumer Protection Act and all requests, rules, guidelines, requirements and directives thereunder or issued therewith or in implementation thereof, shall in each case be deemed to be a change in a Requirement of Law, regardless of the date issued or implemented.

2.15 Taxes.

(a) All payments made by or on behalf of the Company under this Agreement or any other Loan Document shall be made and without reduction or withholding for or on account of, any present or future income, stamp or other taxes, levies, imposts, duties, deductions or withholdings, now or hereafter imposed, levied, collected, withheld or assessed by any Governmental Authority, including addition to tax or penalties applicable thereto, excluding, in the case of the Agent and each Bank, (i) taxes imposed on or measured (however denominated) and franchise taxes and branch profits taxes, in each case, imposed on the Agent or such Bank by the jurisdiction of which the Agent or such Bank (as the case may be) is organized or where its principal office is located, in each case, any political taxing authority thereof or therein, or by any jurisdiction in which such Bank's applicable lending office is located or any political taxing authority thereof or therein, or that are Other Connection Taxes, (ii) in the case of a Bank, U.S. federal withholding taxes imposed on or to or for the account of such Bank with respect to an applicable interest in a Loan or Commitment pursuant to a law in effect on the date (A) such Bank acquires such interest in the Loan or Commitment (other than pursuant to an assignment request by the Company under subsection 2.18(c)) or (B) such Bank changes its lending office, except in each case to the extent that, pursuant to subsection 2.15, amounts with respect to taxes were payable either to such Bank's assignor immediately before such Bank became a party hereto or to such Bank immediately before it changed its lending office (iii) taxes attributable to a failure by a Bank to comply with the form delivery and notice requirements of subsection 2.15 (iv) any withholding taxes imposed under FATCA (all such non-excluded taxes, levies, imposts, duties, deductions, withholdings (including withholding), assessments, fees or other charges imposed by any Governmental Authority, including any interest, additions to tax or penalties thereto being hereinafter called "Taxes"). If any Taxes are required to be withheld from any amounts payable to the Agent or any Bank under any other Loan Document, (x) such amounts shall be paid to the relevant Governmental Authority in accordance with applicable law and the amounts so payable to the Agent or such Bank shall be increased to the extent necessary to yield to the Agent or such Bank (after payment of Taxes) the interest or any such other amounts payable hereunder at the rates or in the amounts specified in this Agreement and the Notes as if such deduction had not been made. Whenever any Taxes are payable by the Company, as promptly as possible thereafter, the Company shall pay to the Agent for its own account or for the account of such Bank, as the case may be, a certified copy of an original official receipt that is received by the Company showing payment thereof (or, if no official receipt is received by the Company, a statement of the Company indicating payment thereof). If the Company fails to pay any Taxes when due to the appropriate taxing authority or fails to remit to the Agent the required receipts or other documentary evidence, the Company shall indemnify the Agent and the Banks for any incremental taxes (including taxes imposed on or to or for the account of such Bank with respect to an applicable interest in a Loan or Commitment pursuant to a law in effect on the date of failure.

(b) The Company shall timely pay to the relevant Governmental Authority in accordance with applicable law, or at the timely reimburse it for the payment of, any Other Taxes.

(c) Any Bank that is entitled to an exemption from or reduction of withholding tax with respect to payments made under the Loan Document shall deliver to the Company and the Agent, at the time or times reasonably requested by the Company or the Agent, such completed and executed documentation reasonably requested by the Company or the Agent as will permit such payments to be made without a reduced rate of withholding. In addition, any Bank, if reasonably requested by the Company or the Agent, shall deliver such other documentation prescribed by applicable law or reasonably requested by the Company or the Agent as will enable the Company or the Agent to determine whether such Bank is subject to backup withholding or information reporting requirements. Notwithstanding anything to the contrary in the Loan Document, the completion, execution and submission of such documentation (other than such documentation set forth in subsections (iv) below) shall not be required if in the Bank's reasonable judgment such completion, execution or submission would subject such Bank to a material unreimbursed cost or expense or would materially prejudice the legal or commercial position of such Bank.

Without limiting the generality of the foregoing,

(i) any Bank that is a "United States person" as defined in Section 7701(a)(30) of the Code shall deliver to the Company and the Agent on or prior to the date on which such Bank becomes a party to this Agreement (and from time to time thereafter upon the request of the Company or the Agent), executed copies of IRS Form W-9 certifying that such Bank is exempt from U.S. federal backup withholding;

(ii) any Bank that is not a "United States person" as defined in Section 7701(a)(30) of the Code (a "Non-U.S. Bank") shall, to the extent it is legally entitled to do so, deliver to the Company and the Agent (in such number of copies as shall be requested by the Company or the Agent) prior to the date on which such Non-U.S. Bank becomes a party to this Agreement (and from time to time thereafter upon the request of the Company or the Agent), whichever of the following is applicable:

(A) in the case of a Non-U.S. Bank claiming the benefits of an income tax treaty to which the United States is a party, with respect to payments of interest under any Loan Document, executed copies of IRS Form W-8BEN or IRS Form W-8BEN-INT establishing an exemption from, or reduction of, U.S. federal withholding tax pursuant to the "interest" article of such tax treaty; (y) with respect to any other applicable payments under any Loan Document, IRS Form W-8BEN or IRS Form W-8BEN-INT establishing an exemption from, or reduction of, U.S. federal withholding Tax pursuant to the "business profits" or "other income" article of such tax treaty;

(B) executed copies of IRS Form W-8ECI;

(C) in the case of a Non-U.S. Bank claiming the benefits of the exemption for portfolio interest under Section 881 of the Code, (x) a certificate substantially in the form of Exhibit K-1 to the effect that such Non-U.S. Bank is a qualified foreign corporation;

a “bank” within the meaning of Section 881(c)(3)(A) of the Code, a “10 percent shareholder” of the Company within the meaning of Section 871(h)(3)(B) of the Code, or a “controlled foreign corporation” related to the Company described in Section 881(c)(3)(A) of the Code (a “U.S. Tax Compliance Certificate”) and (y) executed copies of IRS Form W-8BEN or IRS Form W-8BEN-E.

(D) to the extent a Non-U.S. Bank is not the beneficial owner, executed copies of IRS Form W-8IMY, account statement, IRS Form W-8ECI, IRS Form W-8BEN or IRS Form W-8BEN-E, as applicable, a U.S. Tax Compliance Certificate substantially in the form of Exhibit K-2 or Exhibit K-3, IRS Form W-9, and/or other certification documents from each beneficial owner, as applicable. If the Non-U.S. Bank is a partnership and one or more direct or indirect partners of such Non-U.S. Bank are claiming the exemption, such Non-U.S. Bank may provide a U.S. Tax Compliance Certificate substantially in the form of Exhibit K-3 to each such direct and indirect partner;

(iii) any Non-U.S. Bank shall, to the extent it is legally entitled to do so, deliver to the Company and the Agent (including copies as shall be requested by the recipient) on or prior to the date on which such Non-U.S. Bank becomes a party to this Agreement, and at any time thereafter upon the reasonable request of the Company or the Agent, executed copies of any other form prescribed by the Internal Revenue Service as a basis for claiming exemption from or a reduction in U.S. federal withholding tax, duly completed, together with such other documentation as may be prescribed by applicable law to permit the Company or the Agent to determine the withholding or deduction to be made; and

(iv) If a payment made to a Bank under any Loan Document would be subject to U.S. federal withholding tax imposed on such Bank were to fail to comply with the applicable reporting requirements of FATCA (including those contained in Section 1471 of the Code, as applicable), such Bank shall deliver to the Company and the Agent at the time or times prescribed by law and at any time reasonably requested by the Company or the Agent such documentation prescribed by applicable law (including as prescribed by Section 1471(3)(C)(i) of the Code) and such additional documentation reasonably requested by the Company or the Agent as may be necessary to enable the Company and the Agent to comply with their obligations under FATCA and to determine that such Bank has complied with its obligations under FATCA or to determine the amount to deduct and withhold from such payment. Solely for purposes of this section, “FATCA” shall include any amendments made to FATCA after the date of this Agreement.

Each Bank agrees that if any form or certification it previously delivered expires or becomes obsolete or inaccurate in any respect, it shall promptly notify the Company and the Agent of its legal inability to do so.

(d) Each Bank shall indemnify the Agent for the full amount of any taxes, levies, imposts, duties, charges, fees, deductibles, or similar charges imposed by any Governmental Authority that are attributable to such Bank (including any such amounts

2.17 Application of Proceeds of Loans. The Company may use the proceeds of the Loans for any lawful general corporate purposes, including acquisitions, and in a manner not inconsistent with subsection 4.12.

2.18 Notice of Certain Circumstances; Assignment of Commitments Under Certain Circumstances.

(a) Any Bank claiming any additional amounts payable pursuant to subsection 2.13, 2.14 or 2.15 or exercising its right under subsection 2.12, shall, in accordance with the respective provisions thereof, provide notice to the Company and the Agent. Such notice to the Agent shall include details reasonably sufficient to establish the basis for such additional amounts payable or the rights to be exercised.

(b) Any Bank claiming any additional amounts payable pursuant to subsection 2.13, 2.14 or 2.15 or exercising its right under subsection 2.12, shall use reasonable efforts (consistent with legal and regulatory restrictions) to file any certificate or document requested by the Agent to change the jurisdiction of its applicable lending office if the making of such filing or change would avoid the need for or reduce the amount of additional amounts which may thereafter accrue or avoid the circumstances giving rise to such exercise and would not, in the reasonable opinion of such Bank, be otherwise disadvantageous in any material respect to such Bank.

(c) In the event that (i) the Company shall be required to make any additional payments to any Bank pursuant to subsection 2.15 or any Bank shall exercise its rights under subsection 2.12, (ii) any Bank becomes a Defaulting Bank or (iii) any Bank does not consent to a proposed amendment, supplement, modification, consent or waiver of any provision of this Agreement or any other Loan Document, the Company shall have the right at its own expense, upon notice to such Bank and the Agent, to require such Bank to transfer and to assign with effect from the date of such assignment in accordance with and subject to the terms of subsection 10.6) all its interest, rights and obligations under this Agreement to another financial institution (including any Bank) which shall assume such obligations; provided that (x) no such assignment shall conflict with any Requirement of the applicable law, (y) the assuming financial institution shall pay to such Bank in immediately available funds on the date of such assignment the outstanding principal of such Bank's Loans together with accrued interest thereon and all other amounts accrued for its account or owed to it hereunder, in addition to the amount of such Bank's Loans, limited to additional amounts payable under subsections 2.4, 2.12, 2.13, 2.14, 2.15 and 2.16 and (z) the Company shall be liable to such Bank for the amount of such Bank's Loans under subsection 2.16 if any Term Benchmark Loan owing to such replaced Bank shall be purchased other than on the last day of the Term of such Loan relating thereto.

2.19 [Reserved].

2.20 Defaulting Banks. Notwithstanding any provision of this Agreement to the contrary, if any Bank becomes a Defaulting Bank, the following provisions shall apply for so long as such Bank is a Defaulting Bank:

(a) fees shall cease to accrue on the unused portion of the Commitment of such Defaulting Bank pursuant to subsection 2.16.

(b) the Commitment and Aggregate Outstanding Extensions of Credit of such Defaulting Bank shall not be included whether all Banks, all affected Banks or the Required Banks have taken or may take any action hereunder (including any consent to waiver or other modification pursuant to subsection 10.1); provided that (i) such Defaulting Bank's Commitment may not be increased without its consent and (ii) the principal amount of, or interest or fees payable on, Loans may not be reduced or excused or the scheduled payment may not be postponed as to such Defaulting Bank without such Defaulting Bank's consent; and

(c) in the event that the Agent and the Company each agrees that a Defaulting Bank has adequately remedied all matters, such Bank to be a Defaulting Bank, then on such date such Bank shall purchase at par such of the Loans of the other Banks as the Agent shall determine to be necessary in order for such Bank to hold such Loans in accordance with its Commitment Percentage; provided that no adjustments shall be made retroactively with respect to fees accrued or payments made by or on behalf of the Company while such Bank was a Defaulting Bank.

2.21 Increase of Commitments.

(a) The Company and any one or more Banks (including New Banks) may, at any time when no Default or Event of Default has occurred and is continuing, agree that such Banks shall make, obtain or increase the amount of their Commitments by executing and delivering an Increased Commitment Notice specifying (i) the amount of such increase and (ii) the applicable Increased Commitment Closing Date. Pursuant to the foregoing, (i) without the consent of the Required Banks, the aggregate amount of increased Commitments obtained after the Closing Date to this paragraph, together with any increase of commitments under the 5-Year Revolving Facility (or any facility that replaces or replaces the Revolving Facility), shall not exceed \$500,000,000 and (ii) without the consent of the Agent, each increase effected pursuant to this subsection shall be in a minimum amount of at least \$10,000,000. No Bank shall have any obligation to participate in any increase described in this paragraph, but each Bank agrees to do so in its sole discretion.

(b) Any additional bank, financial institution or other entity which, with the consent of the Company and the Agent (which consent shall not be unreasonably withheld or delayed), elects to become a "Bank" under this Agreement in connection with any transaction described in Section 2.21(a) shall execute a New Bank supplement, substantially in the form of Exhibit J-1, whereupon such bank, financial institution or other entity ("New Bank") shall become a Bank for all purposes and to the same extent as if originally a party hereto and shall be bound by and entitled to the benefits of this Agreement.

(c) Initial Loans made under any such increased Commitments shall be made pursuant to funding procedures then in effect between the Company and the Agent (including as to the initial interest applicable to such Loans), and payments of principal, interest and fees under such Loans shall be made by the Company to give effect to such procedures and the timing of such increased Commitments. Payments to the Bank under such Loans will be made to give effect to the allocations or reallocations described in this subsection.

2.22 Term-Out Option. If the Company delivers a notice to the Agent prior to the Commitment Termination Date (and the Agent shall promptly deliver a copy thereof to each

Bank) electing to exercise its term-out option (such election, the “Term-Out Option”) and extend the Termination Date for all or a portion of such Loans outstanding on such date, the Termination Date with respect to such Loans shall automatically and without any consent or other action by any Bank or other Person be extended to the first anniversary of the Commitment Termination Date, subject to the satisfaction, on the Commitment Termination Date, of the conditions that (a) the Company shall have delivered a certificate to the Agent that the representations and warranties contained in Article IV (other than those set forth in subsections 4.3 and 4.7) shall be true and correct in all material respects and not qualified by materiality or Material Adverse Effect, in all respects) on and as of such date as if made on and as of such date, (b) the Company shall have delivered a certificate to the Agent that no Default or Event of Default shall have occurred and be continuing and (c) the Company shall have delivered to the Agent, for the account of each Bank, on the Commitment Termination Date, a term-out premium (the “Term-Out Premium”) equal to the aggregate principal amount of such Bank’s Loans that are termed-out pursuant to this subsection 2.22.

SECTION 3. [RESERVED]

SECTION 4. REPRESENTATIONS AND WARRANTIES

The Company hereby represents and warrants that:

4.1 Corporate Existence; Compliance with Law. The Company (a) is duly organized, validly existing and, except to the extent that the failure to be in good standing would not reasonably be expected to result in a Material Adverse Effect, in good standing under the laws of the jurisdiction of its organization, (b) has the corporate or similar power and authority, and the legal right, (i) to make, deliver and perform its obligations under Documents to which it is a party and (ii) to own and operate its property, to lease the property it operates as lessee and to conduct the business in which it is currently engaged except in the case of this clause (ii) to the extent the failure thereof would not reasonably be expected to result in a Material Adverse Effect, and (c) is in compliance with all Requirements of Law, including, without limitation, HMO Regulations and Insurance Regulations, except to the extent that the failure to comply therewith would not have a Material Adverse Effect.

4.2 No Legal Obstacle to Agreement; Enforceability. Neither the execution and delivery of any Loan Document, nor the consummation of any borrowings hereunder, nor the consummation of any transaction herein or therein referred to or contemplated hereby, nor the fulfillment of the terms hereof or thereof or of any agreement or instrument referred to in this Agreement, has constituted or resulted in, or result in a breach of (a) any Requirement of Law, including without limitation, HMO Regulations and Insurance Regulations, or any other legal obligation of the Company or any of its Subsidiaries or (b) the Certificate of Incorporation, By-Laws or other organizational or governing documents of the Company, except in the case of clause (a) where such breach would not reasonably be expected to have a Material Adverse Effect, nor the creation under any agreement or instrument of any security interest, lien, charge or encumbrance upon any of the assets of the Company.

Subsidiaries. No approval, authorization or other action by any Governmental Authority, including, without limitation, HMO Regulators, or any other Person is required to be obtained by the Company in connection with the execution, delivery and performance of this Agreement or the other Loan Documents or the transactions contemplated hereby or thereby, or the making of any borrowing by the Company hereunder. This Agreement has been, and each other Loan Document will be, duly executed and delivered on behalf of the Company, and each other Loan Document when executed and delivered will constitute, a legal, valid and binding obligation of the Company enforceable against the Company in accordance with its terms, except as enforceability may be limited by applicable bankruptcy, insolvency, reorganization, moratorium or similar laws affecting the enforcement of creditors' rights generally and by general equitable principles (regardless of whether enforcement is sought by proceedings in equity or at law).

4.3 Litigation. Except as disclosed in the Company's Annual Report on Form 10-K for its fiscal year ended December 31, 2023, or the Company's Quarterly Report on Form 10-Q for its fiscal quarter ended March 31, 2024 filed with the Securities and Exchange Commission, or previously distributed to the Banks or filed with the Securities and Exchange Commission under EDGAR, as of the date hereof, there is no pending law or in equity, or any proceeding before any federal, state, provincial or municipal board or other governmental or administrative agency, without limitation, HMO Regulators and Insurance Regulators, pending or to the knowledge of the Company threatened which, after giving effect to applicable insurance, would reasonably be expected to have a Material Adverse Effect or which seeks to enjoin the consummation of the transactions contemplated by this Agreement or any other Loan Document, and no judgment, decree, or order of any federal, state, provincial or municipal court, board or other governmental or administrative agency, including without limitation, HMO Regulators and Insurance Regulators, has been issued against the Company or any Subsidiary which would reasonably be expected to result in a Material Adverse Effect.

4.4 Disclosure.

(a) Neither this Agreement nor any agreement, document, certificate or statement furnished to the Banks by the Company or any Subsidiary herewith (including, without limitation, the information relating to the Company and its Subsidiaries included in the Confidential Information Memorandum dated May 2024 delivered in connection with the syndication of the credit facilities hereunder) contains as of the date hereof, or at any time, whole together with all other information furnished to the Banks by the Company, any untrue statement of material fact or omits to state any material fact necessary in order to make the statements contained herein or therein not misleading (it being understood that the Company makes no warranty in this sentence with respect to any projections, other forward looking information, industry information or general economic conditions). The financial projections concerning the Company and its respective Subsidiaries furnished to the Banks by or on behalf of the Company or the Company's representatives (the "Projections") have been prepared in good faith based upon reasonable assumptions at the time made. The Projections are furnished to the Banks (it being understood that the Projections are subject to significant uncertainties and contingencies that are beyond the control of the Company, that no assurance can be given that the Projections will be realized, and that actual results may differ from projected results and that such differences may be material).

(b) As of the Closing Date, to the best knowledge of the Company and solely to the extent the Company qualifies as a customer under the Beneficial Ownership Regulation, the information included in any Beneficial Ownership Certification provided to the Company as of the Closing Date to any Bank in connection with this Agreement is true and correct in all respects.

4.5 Anti-Corruption Laws and Sanctions. The Company has implemented and maintains in effect policies and procedures designed to promote and achieve compliance by the Company, its Subsidiaries and their respective directors, officers, employees and agents with Anti-Corruption Laws and applicable Sanctions, and the Company, its Subsidiaries and their respective officers and directors, and to the Company, its employees and agents, are in compliance with Anti-Corruption Laws and Sanctions in all material respects. Neither the Company, its Subsidiaries, nor to the knowledge of the Company and its Subsidiaries, any director, officer, employee, agent, Affiliate, or representative is a Sanctioned Person. No Loan, use of proceeds or other transaction contemplated by this Agreement will violate any Anti-Corruption Laws or applicable Sanctions.

4.6 Financial Condition. The Company has furnished to the Agent and each Bank, or filed with the Securities and Exchange Commission under EDGAR, copies of the following:

(a) the Annual Report of the Company on Form 10-K (and all amendments thereto) for the fiscal year ended December 31, 2023;

(b) the Quarterly Report of the Company on Form 10-Q (and all amendments thereto) for the fiscal quarter ended March 31, 2024.

The financial statements included therein, including the related schedules and notes thereto, have been prepared in accordance with GAAP and consistently throughout the periods involved (except as disclosed therein). As of the date of such financial statements, neither the Company nor its Subsidiaries had any known contingent liabilities of any significant amount which, in accordance with GAAP, is not disclosed in the financial statements or in the notes thereto which would reasonably be expected to have a Material Adverse Effect. During the period from December 31, 2023 and including the Closing Date, there has been no sale, transfer or other disposition by the Company or any of its consolidated Subsidiaries reflected on the balance sheet referred to above that would have been a material part of its business or property and no purchase or acquisition of any business or property (including any Capital Stock of any other Person) material in relation to the consolidated financial condition of the Company and its consolidated Subsidiaries at December 31, 2023 other than as disclosed in Schedule IV.

4.7 Changes in Condition. Since December 31, 2023, there has been no development or event nor any prospective development which has had, or would reasonably be expected to have, a Material Adverse Effect.

4.8 [Reserved].

4.9 [Reserved].

4.10 [Reserved].

4.11 [Reserved].

4.12 Margin Regulations. No part of the proceeds of any Loans will be used in any transaction or for any purpose within the provisions of Regulations U or X as now and from time to time hereafter in effect. The Company is not engaged principally, or as one of its principal activities, in the business of extending credit for the purpose of buying or carrying Margin Stock.

4.13 Investment Company Act. The Company is not an “investment company” registered or required to be registered under the Investment Company Act of 1940, as amended.

4.14 [Reserved].

4.15 [Reserved].

4.16 Affected Financial Institutions. The Company is not an Affected Financial Institution.

SECTION 5. CONDITIONS

5.1 Conditions to the Closing Date. The obligations of each Bank to make the Loans contemplated by subsection 2.1 shall be subject to the compliance by the Company with its agreements herein contained and to the satisfaction, on or before May 31, 2024, of the following conditions:

(a) Credit Agreement. The Agent shall have received this Agreement, executed and delivered by a duly authorized officer of the Company, and the Agent and each Bank.

(b) Legal Opinions. The Agent shall have received opinions rendered by (i) in-house counsel to the Company and (ii) F. Lee Shriver & Jacobson LLP, counsel to the Company, in each case in form and substance reasonably satisfactory to the Agent.

(c) Closing Certificate. The Agent shall have received a Closing Certificate, substantially in the form of Exhibit H and attached hereto, dated the Closing Date, executed by a Responsible Officer.

(d) Financial Statements. The Agent shall have received for the Company (a) GAAP audited consolidated balance sheets, statements of income, stockholders' equity and cash flows for the three most recent fiscal years ended at least 60 days prior to the Closing Date;

(b) GAAP unaudited consolidated balance sheets and related statements of income, stockholders' equity and cash flows for each quarter ended at least 40 days before the Closing Date, which financial statements shall meet the requirements of Regulation S-X under the Securities Act of 1933, as amended, and all other accounting rules and regulations of the SEC promulgated thereunder applicable to a registrant filing such Act on Form S-1; provided that the filing of the required financial statements on Form 10-K and Form 10-Q by the Company shall satisfy the foregoing requirements.

(e) Fees and Expenses. The Agent shall have received, on behalf of itself, the Primary Lead Arrangers, and the Bank, the expenses required to be paid on or prior to the Closing Date pursuant to this Agreement and any other agreements or fee letters relating to the facility set forth in this Agreement to the extent a reasonably detailed invoice has been delivered to the Company at least two business days prior to the Closing Date.

(f) Corporate Proceedings. The Agent shall have received a copy of the resolutions, in form and substance reasonably satisfactory to the Agent, of the board of directors of the Company authorizing (i) the execution, delivery and performance of this Agreement and (ii) the consummation of the transactions contemplated hereunder, certified by the Secretary or an Assistant Secretary of the Company as of the Closing Date, which certificate shall be true and correct in all material respects (or if already made, shall be true and correct in all material respects) on and as of such date as if made on and as of such date. The resolutions thereby certified have not been amended, modified, revoked or rescinded and shall be in form and substance reasonably satisfactory to the Agent.

(g) Corporate Documents. The Agent shall have received true and complete copies of the certificate of incorporation and the bylaws of the Company, certified as of the Closing Date as complete and correct copies thereof by the Secretary or an Assistant Secretary of the Company.

(h) [Reserved].

(i) Incumbency Certificate. The Agent shall have received a certificate of the Secretary or an Assistant Secretary of the Company, dated as of the Closing Date, as to the incumbency and signature of the officers of the Company executing each Loan Document and any certificate of the Secretary or an Assistant Secretary of the Company to be delivered by it pursuant hereto and thereto, together with evidence of the incumbency of such Secretary or Assistant Secretary.

(j) Good Standing Certificate. The Agent shall have received a copy of a certificate dated as of a recent date from the Secretary or an Assistant Secretary of the Company or other appropriate authority of such jurisdiction, evidencing the good standing of the Company in its jurisdiction of incorporation.

(k) Amendment to 5-Year Revolving Credit Agreement. On the Closing Date, the Agent shall have received evidence satisfactory to it that the Amendment to the 5-Year Revolving Credit Agreement shall have been executed and delivered by all parties thereto and that all conditions precedent to the effectiveness thereof shall have been satisfied or waived.

(l) Existing Credit Agreement. On the Closing Date, all loans and other amounts outstanding under the Existing Credit Agreement shall have been repaid and unpaid accrued interest, facility fees and letter of credit fees payable under the Existing Credit Agreement shall have been paid. Each case contemporaneously with the Closing Date and all commitments to extend credit thereunder shall be terminated.

(m) No Default; Representations. No Default or Event of Default shall have occurred and be continuing on the Closing Date. Each of the representations and warranties made by the Company and its Subsidiaries in this Agreement or pursuant to the other Loan Documents shall be true and correct in all material respects (or if already made, shall be true and correct in all material respects) on and as of such date as if made on and as of such date.

(n) Know-Your Customer. At least three Business Days prior to the Closing Date, the Agent shall have received all documents and other information required by bank regulatory authorities under applicable “know-your-customer” and anti-money laundering rules, including the Patriot Act, to the extent requested by the Agent or the Banks (through the Agent) at least ten Business Days prior to the Closing Date. Solely to the extent the Company qualifies as a “legal entity” customer under the Beneficial Ownership Regulation, the Company shall provide to each requesting Bank at least three Business Days prior to the Closing Date (to the extent requested by such Bank at least ten Business Days prior to the Closing Date) a Beneficial Ownership Certification in relation to the Company.

5.2 Conditions to Each Extension of Credit. The agreement of each Bank to make any extension of credit requested to be made on any date is subject to the satisfaction of the following conditions precedent:

(a) Representations and Warranties. Each of the representations and warranties made by the Company and its Subsidiaries in the Loan Agreement (other than, after the Closing Date, those set forth in subsections 4.3 and 4.7) or pursuant to the Loan Documents shall be true and accurate in all material respects (or if already qualified by materiality or Material Adverse Effect, in all respects) on and as of such date as if made on such date.

(b) No Default. No Default or Event of Default shall have occurred and be continuing on such date or after giving effect to any extension of credit requested to be made on such date.

(c) Notice. The Company shall have provided the Agent a notice requesting such extension of credit in accordance with the terms of the Loan Documents.

Each borrowing by the Company hereunder shall constitute a representation and warranty by the Company as of the date of such borrowing that the conditions contained in this subsection 5.2 have been satisfied.

SECTION 6. AFFIRMATIVE COVENANTS

The Company hereby agrees that, from and after the Closing Date and so long as the Commitments remain in effect, and so long as any amount is outstanding and unpaid or any other amount is owing to any Bank or the Agent hereunder (other than contingent obligations for which no demand has been made), the Company shall and (except in the case of delivery of financial information, reports and notices) shall cause each of its Subsidiaries to:

6.1 Taxes, Indebtedness, etc. (a) Duly pay, discharge or otherwise satisfy, or cause to be paid, discharged or otherwise satisfied, all taxes, assessments, levies and other governmental charges imposed upon such Person and its property, or upon its activities, or any part thereof, or upon the income or profits therefrom, that if not paid, would reasonably be expected to have a Material Adverse Effect on the Company, provided, however, that any such tax, assessment, charge or levy need not be paid if the validity or amount thereof shall currently be in dispute in good faith by appropriate proceedings and if the Company or the Subsidiary in question shall have set aside on its books appropriate reserves for such taxes with GAAP with respect thereto; and (b) promptly pay when due, or in conformance with customary trade terms, all other Indebtedness of the Company or its Subsidiaries, together with interest and other obligations of whatever nature incident to such Indebtedness.

its operations, that if not paid, would reasonably be expected to have a Material Adverse Effect; provided, however, that any such Inc or obligation need not be paid if the validity or amount thereof shall currently be contested in good faith and if the Company or th question shall have set aside on its books appropriate reserves in conformity with GAAP with respect thereto.

6.2 Maintenance of Properties; Maintenance of Existence. Keep its properties in good repair, working order and condit and tear excepted, except where failure to do so would not reasonably be expected to have a Material Adverse Effect; and in the case any Subsidiary of the Company while such Person remains a Subsidiary, do all things necessary to preserve, renew and keep in full f in good standing its corporate existence and all rights, privileges and franchises necessary to continue such businesses, except wher would not reasonably be expected to have a Material Adverse Effect.

6.3 Insurance. Maintain or cause to be maintained insurance, with credit worthy insurance companies including any S engaged in the business of providing insurance protection, or self-insure, against such risks and in such amounts as are usually mai against by other corporations engaged in the same or a similar business or consistent with the Company's past practi

6.4 Financial Statements. Furnish (or make available via the IntraLinks website or the Securities and Exchange Com website) the following to the Agent and each Bank (if not provided via IntraLinks):

(a) Annual Statements. As soon as available, and in any event within 100 days after the end of each fiscal year, the cor sheet as at the end of each fiscal year and consolidated statements of profit and loss and of retained earnings for such fiscal year of th

Subsidiaries, together with comparative consolidated figures for the next preceding fiscal year, accompanied by reports or ce PricewaterhouseCoopers LLP, or, if they cease to be the auditors of the Company, of other independent public accountants of natio reputation, to the effect that such balance sheet and statements were prepared in accordance with GAAP consistently applied and fa material respects the financial position of the Company and its Subsidiaries as at the end of such fiscal year and the results of thei changes in financial position for the year then ended. In addition, such financial statements shall be accompanied by a certificate of f Company containing computations showing compliance with subsection 7.1 and certifying that no Default or Event of Default is ther Default or Event of Default is then continuing, setting forth the nature of such Default or Event of Default).

(b) Quarterly Statements. As soon as available, and in any event within 55 days after the close of each of the first three the Company and its Subsidiaries in each year, the consolidated balance sheet as at the end of such fiscal quarter and consolidated s and loss and retained earnings for the portion of the fiscal year then ended, of the Company and its Subsidiaries, together with comp compliance with subsection 7.1, accompanied by a certificate of the treasurer of the Company that such statements and computations prepared in accordance with GAAP, consistently applied, and fairly present in all material respects the financial position of the C Subsidiaries as at the end of such fiscal quarter and the results of their operations and changes in financial position

for such quarter and for the portion of the fiscal year then ended, subject to normal audit and year-end adjustments and certifying that the Event of Default is then continuing (or, if a Default or Event of Default is then continuing, setting forth the nature of such Default or Event of Default).

6.5 Certificates; Other Information. Furnish to the Agent and each Bank (or make available via the IntraLinks website or, if not available, the Securities and Exchange Commission EDGAR website):

(a) within five Business Days after the same are sent, copies of all financial statements and reports which the Company is required to file with the Securities and Exchange Commission; and

(b) promptly, such additional financial and other information as the Agent may from time to time reasonably request from the Bank.

6.6 [Reserved].

6.7 Compliance with Laws. Comply with all Requirements of Law, except where the failure to comply therewith would, in the aggregate, reasonably be expected to have a Material Adverse Effect and maintain in effect and enforce policies and procedures reasonably designed to promote and achieve compliance by the Company, its Subsidiaries and their respective directors, officers, employees and agents with applicable Laws and applicable Sanctions.

6.8 Inspection of Property; Books and Records; Discussions. Keep proper books of records and account in which full and true entries shall be made of all dealings and transactions material to the Company and its Subsidiaries, taken as a whole, in relation to its business activities; and permit, upon reasonable notice, representatives of the Agent (or if an Event of Default has occurred and is continuing, representatives of the Agent and the Banks) to inspect any of its properties and examine and make abstracts from any of its books and records at any reasonable time and to the extent reasonably be desired (but in any event no more frequently than once in any twelve-month period unless an Event of Default has occurred and is continuing) and to discuss the business, operations, properties and financial and other condition of the Company and its Subsidiaries with its employees of the Company and its Subsidiaries; provided, however, that the inspection rights of the Agent and the Banks shall not be exercised to the extent that such inspection would result in violation or other breach of any third-party confidentiality agreements.

6.9 Notices. Promptly give notice to the Agent and each Bank of the occurrence of any Default or Event of Default. Each notice given pursuant to this subsection shall be accompanied by a statement of a Responsible Officer setting forth details of the occurrence referred to in the notice and what action the Company proposes to take with respect thereto.

SECTION 7. NEGATIVE COVENANTS

The Company hereby agrees that, from and after the Closing Date and so long as the Commitments remain in effect, outstanding and unpaid or any other amount is owing to any Bank or the Agent hereunder (other than contingent obligations for which made), the Company shall not:

7.1 Financial Condition Covenant. Permit the Consolidated Capitalization Ratio on the last day of any fiscal quarter of greater than 0.60 to 1.0; provided that (a) at any time after the definitive agreement for a Material Acquisition shall have been executed of a Material Acquisition in the form of a tender offer or similar transaction, after the offer shall have been launched) and prior to the such Material Acquisition (or termination of the definitive documentation in respect thereof (or such later date as such indebtedness Acquisition Indebtedness as set forth in the definition of "Acquisition Indebtedness")), any Acquisition Indebtedness (and the pro Indebtedness) shall be excluded from the determination of the Consolidated Capitalization Ratio; provided that promptly following thereof, the Company shall provide a certification to the Agent that the Acquisition Indebtedness (and the proceeds from any such Indebtedness) be used in connection with the consummation of such Material Acquisition; and (b) at the Company's election and upon written request, the Company to the Agent within 30 days after the consummation of a Material Step-Up Acquisition, for the fiscal quarter in which such Acquisition is consummated and each of the three fiscal quarters thereafter, the maximum Consolidated Capitalization Ratio pursuant to 7.1 shall increase to 0.65 to 1.0; provided that (i) the Company may increase the Consolidated Capitalization Ratio following the consummation of a Material Step-Up Acquisition not more than two times during the term of this Agreement and (ii) following any such increase, the Consolidated Capitalization Ratio shall be 0.60 to 1.0 for at least two consecutive fiscal quarter end dates before the maximum Consolidated Capitalization Ratio may be increased to 0.65 to 1.0 again as a result of a subsequent Material Step-Up Acquisition.

7.2 Limitation on Subsidiary Indebtedness. Permit any of its Subsidiaries to create, incur, assume or suffer to exist and be obligated to, except:

- (a) Indebtedness of any Subsidiary to the Company or any other Subsidiary;
- (b) Indebtedness of a Person which becomes a Subsidiary after the date hereof, and any refinancings, refundings, renewals, extensions thereof that do not increase the outstanding principal amount thereof (other than increases in the principal amount to cover fees, prepayment premiums and transaction fees and expenses); provided that (i) such indebtedness existed at the time such Person became a Subsidiary and was not created in anticipation thereof and (ii) immediately before and after giving effect to the acquisition of such Person by the Company, no Event of Default under subsection 8.1(a) or 8.1(f) shall have occurred and be continuing;
- (c) [reserved]; and
- (d) additional Indebtedness of Subsidiaries of the Company not exceeding the greater of (i) \$2,250,000,000 and (ii) 15% of the Company's Net Worth as of the date of incurrence (on a pro forma basis, for the avoidance of doubt, in accordance with the financial statements).

recently reported by the Company pursuant to subsection 6.4 on or prior to such date or, if prior to the first report under subsection 6.4, the most recent financial statements delivered pursuant to subsection 5.1(d)), in aggregate principal amount at any one time outstanding (including any refinancings, refundings, renewals, amendments or extensions thereof that do not increase the outstanding principal amount thereof (including in the principal amount to cover accrued interest, fees, prepayment premiums and transaction fees and expenses)).

7.3 Limitation on Liens. Create, incur, assume or suffer to exist, or permit any of its Subsidiaries to create, incur, assume or suffer to exist, any Lien upon any property of the Company or any of its Subsidiaries, whether now owned or hereafter acquired, except as follows:

- (a) Liens, if any, securing the obligations of the Company under this Agreement, including Liens created under subsection 6.4;
- (b) Liens for taxes, assessments, fees or governmental charges to the extent not required to be paid under subsection 6.4;
- (c) carriers', warehousemen's, mechanics', materialmen's, repairmen's or other like Liens arising in the ordinary course of business which are not overdue for a period of more than 60 days or which are being contested in good faith by appropriate proceedings;
- (d) pledges or deposits in connection with workers' compensation, unemployment insurance and other social security obligations;
- (e) Liens to secure the performance of bids, tenders, trade contracts (other than for borrowed money), leases, statutory obligations, and appeal bonds, performance bonds and other obligations of a like nature, or to qualify to do business, maintain insurance or obtain licenses, in each case incurred in the ordinary course of business;
- (f) easements, rights-of-way, restrictions, leases of property to others, easements for installations of public utilities, title commitments, restrictions, zoning ordinances and other similar encumbrances affecting property which in the aggregate do not materially impair the operation of the business of the Company or such Subsidiary;
- (g) Liens in existence on the Closing Date securing Indebtedness in existence on the Closing Date (and the replacement, extension or renewal thereof upon or in the same property) and, with respect to Indebtedness in an aggregate amount in excess of \$50,000,000, provided that no such Lien is spread to cover any additional property or any material improvements to the property after the Closing Date and the amount of Indebtedness secured thereby is not increased;
- (h) Liens securing Indebtedness of the Company and its Subsidiaries not prohibited hereunder incurred to finance the acquisition, improvement of fixed or capital assets, and the replacement, extension or renewal thereof upon or in the same property; provided that (i) such Liens shall be created within 270 days after the acquisition or improvement of such fixed or capital assets, (ii) such Liens do not at any time secure Indebtedness on property other than the property financed by such Indebtedness and (iii) the principal amount of Indebtedness secured by any such Liens does not exceed 100% of the original purchase price of such property;

(i) Liens on the property or assets of a Person which becomes a Subsidiary after the date hereof, and the replacement, exchange or sale of the property or assets thereof upon or in the same property; provided that (i) such Liens existed at the time such Person became a Subsidiary and were not anticipated in the ordinary course of business of such Person and (ii) the amount of Indebtedness secured thereby, if any, is not increased, except in respect of commitments entered into by such Person after such Person became a Subsidiary;

(j) Liens on the Headquarters, the Waterside Garage, the Clocktower Building and the Waterside Building;

(k) [reserved];

(l) usual and customary set off rights with respect to bank accounts and brokerage accounts in the ordinary course of business;

(m) statutory Liens in favor of lessors arising in connection with property leased to the Company or any of its Subsidiaries;

(n) Liens securing Indebtedness of a Subsidiary to the Company or another Subsidiary;

(o) Liens arising in the ordinary course of its business which do not secure Indebtedness and do not, in the aggregate, exceed 10% of the value of the business of the Company and its Subsidiaries, taken as a whole;

(p) Liens in favor of the United States of America, or any state thereof, to secure partial, progress, advance or other payment under any contract or provisions of any statute;

(q) Liens not otherwise permitted under this subsection 7.3 securing obligations in an aggregate amount not exceeding 10% of Consolidated Net Tangible Assets as of the date of incurrence (on a pro forma basis, for the avoidance of doubt, in accordance with the financial statements as most recently reported by the Company pursuant to subsection 6.4 on or prior to such date or, if prior to the first report filed pursuant to subsection 6.4, as reported in the most recent financial statements delivered pursuant to subsection 5.1(d)); and

(r) Liens on deposits securing hedging obligations incurred in the ordinary course of business.

7.4 Limitation on Mergers and Consolidations; Sale of Assets. Enter into any merger, consolidation or amalgamation, liquidation, dissolution or sell, lease, assign, transfer or otherwise dispose (including by way of deed, mortgage or otherwise) of substantially all of the property, business or assets (including, without limitation, receivables and leasehold interests) of the Company and its Subsidiaries taken as a whole, except:

(a) the Company may merge, consolidate or amalgamate into another Person owned by the Company for the purpose of the Company to be incorporated in a different jurisdiction;

(b) the Company may merge, consolidate or amalgamate into another Person; provided that (i) either (x) the Company, continuing or surviving Person of such merger or (y) if the Company is not the survivor, (I) the Person which is the survivor shall be organized under the laws of the United States of America, any State thereof or the District of Columbia, and shall expressly assume, pursuant to an instrument executed and delivered to the Agent, and in form and substance reasonably satisfactory to the Agent, all obligations of the Company under the Documents, (II) the Agent shall have received such documents and certificates as it shall have reasonably requested in connection with such merger, (III) such Person shall have delivered information and documentation of the type referred to in subsection 5.1(n) with respect to such merger, and (ii) immediately before and after giving effect to such merger no Default or Event of Default shall have occurred and be continuing.

(c) (i) any Subsidiary may convey, sell, lease, assign, transfer or otherwise dispose of its property to the Company and, if such transfer occurs after a Default or Event of Default shall have occurred and be continuing, the Company may convey, sell, lease, assign, transfer or otherwise dispose of substantially all of its property to a wholly-owned domestic Subsidiary that assumes all of the obligations of the Company under the Documents pursuant to an instrument executed and delivered to the Agent, and in form and substance reasonably satisfactory to the Agent and with respect to which the Agent shall have received such documents and certificates as it shall have reasonably requested in connection therewith.

Notwithstanding the foregoing, the Company will not change its jurisdiction of organization to a jurisdiction that is not a state or the District of Columbia or the District of Columbia.

7.5 [Reserved].

7.6 [Reserved].

7.7 Anti-Corruption Laws; Sanctions Laws. Use, and shall ensure that its Subsidiaries and its or their respective directors, officers, employees and, to the knowledge of the Company, agents, shall not use the proceeds of the Loans directly, or to the knowledge of the Company, indirectly (i) for any purpose which would violate Anti-Corruption Laws, (ii) to fund, finance or facilitate any activities, business operations or transactions with any Sanctioned Person, or with or in any Embargoed Jurisdiction, except to the extent permitted for a Person required to comply with applicable laws, and (iii) in any other manner that would result in a violation of any applicable Sanctions by any party hereto.

SECTION 8. DEFAULTS

8.1 Events of Default. Upon the occurrence of any of the following events:

(a) any default shall be made by the Company in any payment in respect of: (i) interest on any of the Loans or fee payable on any of the Loans, or (ii) any principal of the Loans as the same shall become due and such default shall continue for a period of five Business Days; or (ii) any principal of the Loans as the same shall become due, whether at maturity, by prepayment, by acceleration or otherwise; or

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- (b) any default shall be made by either the Company or any Subsidiary of the Company in the performance or observance of provisions of subsections 6.2 (relating to the maintenance of corporate existence of the Company only), 6.9, 7.1, 7.2, 7.3 and 7.4;
- (c) any default shall be made in the due performance or observance of any other covenant, agreement or provision to be observed by the Company under this Agreement, and such default shall not be rectified or cured within a period of 30 days from receipt of notice from the Agent or any Bank of such default; or
- (d) any representation or warranty made or deemed made by the Company herein or in any other Loan Document or within any certificate, document or financial or other statement furnished at any time under or in connection with this Agreement shall have been materially false in material respect on or as of the date made and the facts or circumstances to which such representation or warranty relates shall not have been subsequently corrected to make such representation or warranty no longer incorrect in any material respect; or
- (e) the Company or any Significant Subsidiary shall fail to make any payment (whether of principal or interest) in respect of its Indebtedness for borrowed money having an outstanding principal amount of \$250,000,000 (or its equivalent in any other currency) as the same shall become due and payable; or any event or condition occurs that results in any outstanding Indebtedness for borrowed money of the Company or any Significant Subsidiary having an outstanding principal amount of \$250,000,000 (or its equivalent in any other currency) becoming due prior to its scheduled maturity, or that enables or permits the holder or holders of such Indebtedness or any trustee or agent to take any action on behalf to cause such indebtedness to become due prior to its scheduled maturity; or
- (f) either the Company or any Significant Subsidiary (including any group of Subsidiaries considered collectively in the aggregate that would constitute a Significant Subsidiary) shall be involved in financial difficulties as evidenced:
- (i) by its commencement of a voluntary case under Title 11 of the United States Code as from time to time in the future, or authorizing, by appropriate proceedings of its board of directors or other governing body, the commencement of such a voluntary case;
- (ii) by the filing against it of a petition commencing an involuntary case under said Title 11 which shall not have been withdrawn within 60 days after the date on which said petition is filed or by its filing an answer or other pleading within said 60-day period failing to deny the material allegations of such a petition or seeking, consenting or acquiescing in the relief therein provided for;
- (iii) by the entry of an order for relief in any involuntary case commenced under said Title 11; or
- (iv) by its seeking relief as a debtor under any applicable law, other than said Title 11, of any jurisdiction relating to the reorganization of debtors or to the modification or alteration of the rights of creditors, or by its consenting to or acquiescing in such relief.

(v) by the entry of an order by a court of competent jurisdiction (A) finding it to be bankrupt or insolvent, (B) ordering its liquidation, reorganization or any modification or alteration of the rights of its creditors or (C) assuming custody of, or appointing another custodian for, all or a substantial part of its property;

(vi) by its making an assignment for the benefit of, or entering into a composition with, its creditors, or appointing the appointment of a receiver or other custodian for all or a substantial part of its property; or

(vii) by the Company or any of its Significant Subsidiaries (including any group of Subsidiaries considered in the aggregate, that would constitute a Significant Subsidiary) generally not paying, or being unable to pay, or admitting in writing its debts as they become due; or

(g) a Change in Control of the Company shall occur;

(h) (i) any Person shall engage in any non-exempt Prohibited Transaction involving any Plan, (ii) any failure to meet the standards (as defined in Section 412 of the Code or Section 302 of ERISA), whether or not waived, shall exist with respect to a Reportable Event shall occur with respect to a Single Employer Plan, or proceedings shall commence to have a trustee appointed, or appointed, to administer or to terminate, any Single Employer Plan, which Reportable Event or commencement of proceedings or trustee is, in the reasonable opinion of the Required Banks, likely to result in the termination of such Plan for purposes of Title IV of ERISA, (v) the Company, any Subsidiary or any Control Group Person, in the reasonable opinion of the Required Banks shall be likely to, incur any liability in connection with a withdrawal from, or the termination of, a Multiemployer Plan or (vi) any other event or condition shall occur or exist, with respect to a Plan; and in each case in clause above, such event or condition, together with all other such events or conditions, if any, would reasonably be expected to have a Material Adverse Effect; or

(i) one or more judgments or decrees shall be entered against the Company or any of its Significant Subsidiaries and such judgments or decrees shall not have been vacated, discharged, stayed or bonded pending appeal within 60 days from the entry thereof that involve a liability (not paid or to the extent not covered by insurance) of \$250,000,000 or more; or

(j) [reserved]; or

(k) on or after the Closing Date, (i) for any reason this Agreement ceases to be or is not in full force and effect or (ii) the Required Banks assert that this Agreement has ceased to be or is not in full force and effect;

then, and in any such event, (A) if such event is an Event of Default specified in paragraph (f) above with respect to the Company, the Commitments shall immediately terminate and the Loans hereunder (with accrued interest thereon) and all other amounts owing under the Commitments (the "Bank Obligations") shall immediately become due and payable, and (B) if such

event is any other Event of Default, either or both of the following actions may be taken: (i) with the consent of the Required Banks, upon the request of the Required Banks, the Agent shall, by notice to the Company, declare the Commitments to be terminated forthwith; and (ii) with the consent of the Required Banks, the Agent may, or upon the request of the Required Banks, the Agent shall, by notice of default to the Company, declare the Bank Obligations to be due and payable forthwith, whereupon the Bank Obligations shall immediately become due and payable.

8.2 Annulment of Defaults. An Event of Default shall not be deemed to be in existence for any purpose of this Agreement if, with the consent of or at the direction of the Required Banks, subject to subsection 10.1, shall have waived such event in writing or shall have waived the same has been cured to its reasonable satisfaction, but no such waiver shall extend to or affect any subsequent Event of Default of the Agent or the Banks upon the occurrence thereof.

8.3 Waivers. The Company hereby waives to the extent permitted by applicable law (a) all presentments, demands for payment, notices of nonperformance (except to the extent required by the provisions hereof), protests, notices of protest and notices of dishonor with any of the Loans, (b) any requirement of diligence or promptness on the part of any Bank in the enforcement of its rights under this Agreement and (c) any and all notices of every kind and description which may be required to be given by any statute or rule of court.

8.4 Course of Dealing. No course of dealing between the Company and any Bank shall operate as a waiver of any of the obligations under this Agreement. No delay or omission on the part of any Bank in exercising any right under this Agreement or with respect to the Bank Obligations shall operate as a waiver of such right or any other right hereunder. A waiver on any one occasion shall not be construed as a waiver of any right or remedy on any future occasion. No waiver or consent shall be binding upon any Bank unless it is in writing and signed by the Agent or such of the Banks as may be required by the provisions of this Agreement. The making of a Loan hereunder during the existence of an Event of Default shall not constitute a waiver thereof.

SECTION 9. THE AGENT

9.1 Appointment. Each Bank hereby irrevocably designates and appoints JPMorgan as the Agent of such Bank under this Agreement and each such Bank irrevocably authorizes JPMorgan, as the Agent for such Bank, to take such action on its behalf under the provisions of this Agreement and to exercise such powers and perform such duties as are expressly delegated to the Agent by the terms of this Agreement, together with such powers as are reasonably incidental thereto. Notwithstanding any provision to the contrary elsewhere in this Agreement, the Agent shall not have any duties or responsibilities, except those expressly set forth herein, or any fiduciary relationship with any Bank, and no implied covenants, duties, obligations or liabilities shall be read into this Agreement or otherwise exist against the Agent.

9.2 Delegation of Duties. The Agent may execute any of its duties under this Agreement by or through agents or attorneys be entitled to advice of counsel concerning all matters pertaining to such duties. The Agent shall not be responsible for the negligence of any agents or attorneys-in-fact selected by it with reasonable care.

9.3 Exculpatory Provisions. Neither the Agent nor any of its officers, directors, employees, agents, attorneys-in-fact or (a) liable for any action lawfully taken or omitted to be taken by it or such Person under or in connection with this Agreement (except for the Person's own gross negligence or willful misconduct) or (b) responsible in any manner to any of the Banks for any recitals, statements or warranties made by the Company or any officer thereof contained in this Agreement or in any certificate, report, statement or other document to or provided for in, or received by the Agent under or in connection with, this Agreement or for the value, validity, effectiveness, enforceability or sufficiency of this Agreement or for any failure of the Company to perform its obligations hereunder. The Agent shall have no obligation to any Bank to ascertain or to inquire as to the observance or performance of any of the agreements contained in, or compliance with, this Agreement, or to inspect the properties, books or records of the Company.

9.4 Reliance by Agent. The Agent shall be entitled to rely, and shall be fully protected in relying, upon any writing, receipt, consent, certificate, affidavit, letter, cablegram, telegram, telecopy, telex or teletype message, statement, order or other document believed by it to be genuine and correct and to have been signed, sent or made by the proper Person or Persons and upon advice and counsel (including, without limitation, counsel to the Company), independent accountants and other experts selected by the Agent. The Agent shall be fully justified in failing or refusing to take any action under this Agreement unless it shall first receive such advice or concurrence of counsel as it deems appropriate or it shall first be indemnified to its satisfaction by the Banks against any and all liability and expense which it may incur by reason of taking or continuing to take any such action. The Agent shall in all cases be fully protected in acting, or in refraining from acting, pursuant to this Agreement in accordance with a request of the Required Banks, and such request and any action taken or failure to act pursuant to such request shall be binding upon all the Banks.

9.5 Notice of Default. The Agent shall not be deemed to have knowledge or notice of the occurrence of any Default or Event of Default hereunder unless the Agent has received notice from a Bank or the Company referring to this Agreement, describing such Default or Event of Default and stating that such notice is a "notice of default". In the event that the Agent receives such a notice, the Agent shall promptly give notice to the Banks. The Agent shall take such action with respect to such Default or Event of Default as shall be reasonably directed by the Required Banks, provided that, unless and until the Agent shall have received such directions, the Agent may (but shall not be obligated to) take such action or refrain from taking such action, with respect to such Default or Event of Default as it shall deem advisable in the best interests of the Company.

9.6 Non-Reliance on Agent and Other Banks. Each Bank expressly acknowledges that neither the Agent nor any of its officers, directors, employees, agents, attorneys-in-fact or Affiliates has made any representations or warranties to it and that no act by the Agent hereunder, including any review of the affairs of the Company, shall be deemed to constitute any representation or warranty by the Agent to any Bank, and the Agent represents to the

Agent that it has, independently and without reliance upon the Agent or any other Bank, and based on such documents and information appropriate, made its own appraisal of and investigation into the business, operations, property, financial and other condition and credit of the Company and made its own decision to make its Loans hereunder and enter into this Agreement. Each Bank also represents that it will, and without reliance upon the Agent or any other Bank, and based on such documents and information as it shall deem appropriate and to make its own credit analysis, appraisals and decisions in taking or not taking action under this Agreement, and to make such investigations necessary to inform itself as to the business, operations, property, financial and other condition and creditworthiness of the Company. The Agent shall not have any duty to provide any Bank with any credit or other information concerning the business, operations, property, financial and other condition of the Company which may come into the possession of the Agent or any of its officers, directors, employees, agents, attorneys-in-

9.7 Indemnification. The Banks agree to indemnify the Agent in its capacity as such (to the extent not reimbursed by the Company without limiting the obligation of the Company to do so), ratably according to the respective amounts of their then existing Commitments have terminated, their then Aggregate Outstanding Extensions of Credit), from and against any and all liabilities, obligations, damages, penalties, actions, judgments, suits, costs, expenses or disbursements of any kind whatsoever which may at any time (in limitation at any time following the payment of the Loans) be imposed on, incurred by or asserted against the Agent in any way relating to this Agreement, or any documents contemplated by or referred to herein or the transactions contemplated hereby or any action taken by the Agent under or in connection with any of the foregoing; provided that no Bank shall be liable for the payment of any portion of the Agent's obligations, losses, damages, penalties, actions, judgments, suits, costs, expenses or disbursements resulting from the Agent's gross negligence or willful misconduct. The agreements in this subsection shall survive the payment of the Loans and all other amounts payable by the

9.8 Agent in Its Individual Capacity. The Agent and its Affiliates may make loans to, accept deposits from and generally conduct any kind of business with the Company as though the Agent were not the Agent hereunder. With respect to its Loans made or renewed by the Agent, the Agent shall have the same rights and powers under this Agreement as any Bank and may exercise the same as though it were not the Agent, and "Banks" shall include the Agent in its individual capacity. The motivations of the Agent are commercial in nature and not to improve the performance or operations of the Company.

9.9 Successor Agent. The Agent may resign as Agent upon 30 days' notice to the Banks and the Company. If the Agent resigns as Agent under this Agreement, then the Required Banks shall appoint from among the Banks a successor agent for the Banks which shall be approved by the Company, whereupon such successor agent shall succeed to the rights, powers and duties of the Agent and the term "Agent" shall mean such successor agent effective upon its appointment, and the former Agent's rights, powers and duties as Agent shall be terminated. The Agent shall not perform any other or further act or deed on the part of such former Agent or any of the parties to this Agreement or any holders of the Notes. A
Agent's resignation

hereunder as Agent, the provisions of this subsection 9.9 shall inure to its benefit as to any actions taken or omitted to be taken by it under this Agreement.

9.10 Syndication Agent and Documentation Agents. The Syndication Agent and Documentation Agents shall not have the same responsibilities hereunder in their respective capacities as such. The motivations of the Syndication Agent and Documentation Agents shall be the nature and not to invest in the general performance or operations of the Company.

9.11 No Fiduciary Relationship. Without limiting the foregoing, none of the Banks shall have or be deemed to have a fiduciary relationship with any other Bank. Each Bank represents and warrants that (i) the Loan Documents set forth in the terms of a commercial lending agreement in which it is participating as a Bank, it is engaged in making, acquiring or holding commercial loans and in providing other facilities set forth in the Loan Documents applicable to such Bank in the ordinary course of business, and not for the purpose of investing in the general performance or operations of the Company, or for the purpose of purchasing, acquiring or holding any other type of financial instrument such as a security (and each Bank shall not assert a claim in contravention of the foregoing, such as a claim under the federal or state securities laws).

9.12 Certain ERISA Matters.

(a) Each Bank (x) represents and warrants, as of the date such Person became a Bank party hereto, to, and (y) covenants that, from the date such Person became a Bank party hereto to the date such Person ceases being a Bank party hereto, for the benefit of, the Agent and the Company, to the avoidance of doubt, to or for the benefit of the Company, that at least one of the following is and will be true:

(i) such Bank is not using “plan assets” (within the meaning of Section 3(42) of ERISA or otherwise) of one or more ERISA plans in connection with respect to such Bank’s entrance into, participation in, administration of and performance of the Loans, the Commitments and this Agreement;

(ii) the transaction exemption set forth in one or more PTEs, such as PTE 84-14 (a class exemption for certain transactions determined by independent qualified professional asset managers), PTE 95-60 (a class exemption for certain transactions involving insurance company general accounts), PTE 90-1 (a class exemption for certain transactions involving insurance company pooled separate accounts), PTE 91-38 (a class exemption for certain transactions involving bank collective investment funds) or PTE 96-23 (a class exemption for certain transactions determined by in-house asset managers), is applicable with respect to such Bank’s entrance into, participation in, administration of and performance of the Loans, the Commitments and this Agreement,

(iii) (A) such Bank is an investment fund managed by a “Qualified Professional Asset Manager” (within the meaning of PTE 84-14), (B) such Qualified Professional Asset Manager made the investment decision on behalf of such Bank to enter into, administer and perform the Loans, the Commitments and this Agreement, (C) the entrance into, participation in, administration of and performance of the Loans, the Commitments and this Agreement satisfies the requirements of sub-sections (b) through (g) of Part I of PTE 84-14 and (D) to the best knowledge of such Bank, the requirements of subsection (a) of Part I of PTE 84-14 are satisfied with respect to such Bank.

such Bank's entrance into, participation in, administration of and performance of the Loans, the Commitments and this Agreement.

(iv) such other representation, warranty and covenant as may be agreed in writing between the Agent, in its sole discretion, and the Bank.

(b) In addition, unless either (1) sub-clause (i) in the immediately preceding clause (a) is true with respect to a Bank or (2) the Bank provided another representation, warranty and covenant in accordance with sub-clause (iv) in the immediately preceding clause (a), (x) represents and warrants, as of the date such Person became a Bank party hereto, to, and (y) covenants, from the date such Person became a Bank party hereto to the date such Person ceases being a Bank party hereto, for the benefit of, the Agent and not, for the avoidance of doubt, for the benefit of the Company, that the Agent is not a fiduciary with respect to the assets of such Bank involved in such Bank's entrance into, participation in, administration of and performance of the Loans, the Commitments and this Agreement (including in connection with the reservation of rights by the Agent under this Agreement, any Loan Document or any documents related hereto or thereto).

9.13 Payments.

(a) Each Bank hereby agrees that (x) if the Agent notifies such Bank that the Agent has determined in its sole discretion that any Payment received by such Bank from the Agent or any of its Affiliates (whether as a payment, prepayment or repayment of principal, interest, dividend, fee, or otherwise) individually and collectively, a "Payment") were erroneously transmitted to such Bank (whether or not known to such Bank), and determines that such Payment (or a portion thereof), such Bank shall promptly, but in no event later than one Business Day thereafter, return to the Agent the amount of any such Payment (or portion thereof) as to which such a demand was made in same day funds, together with interest thereon in respect of each day from and including the date such Payment (or portion thereof) was received by such Bank to the date such amount is repaid to the Agent at the NYFRB Rate and a rate determined by the Agent in accordance with banking industry rules on interbank compensation from time to time, and (y) to the extent permitted by applicable law, such Bank shall not assert, and hereby waives, as to the Agent, any claim, counterclaim, right of set-off or recoupment with respect to any demand, claim or counterclaim by the Agent for the return of any Payments received by such Bank without limitation any defense based on "discharge for value" or any similar doctrine. A notice of the Agent to any Bank under this clause shall be conclusive, absent manifest error.

(b) Each Bank hereby further agrees that if it receives a Payment from the Agent or any of its Affiliates (x) that is in a form other than, or on a different date from, that specified in a notice of payment sent by the Agent (or any of its Affiliates) with respect to such Payment, or (y) that was not preceded or accompanied by a Payment Notice, it shall be on notice, in each such case, that such Payment was made with respect to such Payment. Each Bank agrees that, in each such case, or if it otherwise becomes aware a Payment (or portion thereof) has been sent in error, such Bank shall promptly notify the Agent of such occurrence and, upon demand from the Agent, it shall promptly return to the Agent the amount of any such Payment (or portion thereof) as to which such a demand was made in same day funds, together with interest thereon in respect of each day from and including the date such Payment (or portion thereof) was received by such Bank to the date such amount is repaid to the Agent at the NYFRB Rate and a rate determined by the Agent in accordance with banking industry rules on interbank compensation from time to time, and (y) to the extent permitted by applicable law, such Bank shall not assert, and hereby waives, as to the Agent, any claim, counterclaim, right of set-off or recoupment with respect to any demand, claim or counterclaim by the Agent for the return of any Payments received by such Bank without limitation any defense based on "discharge for value" or any similar doctrine. A notice of the Agent to any Bank under this clause shall be conclusive, absent manifest error.

Bank to the date such amount is repaid to the Agent at the greater of the NYFRB Rate and a rate determined by the Agent in accordance with industry rules on interbank compensation from time to time in effect.

(c) The Company hereby agrees that (x) in the event an erroneous Payment (or portion thereof) is not recovered from the Bank that received such Payment (or portion thereof) for any reason, the Agent shall be subrogated to all the rights of such Bank with respect to such Payment (or portion thereof); and (y) an erroneous Payment shall not pay, prepay, repay, discharge or otherwise satisfy any obligations under this Agreement owed by the Company to the Bank, except, in each case, to the extent such erroneous Payment is, and solely with respect to the amount of such erroneous Payment that the Bank has received from the Company for the purpose of making a payment hereunder and is not otherwise repaid or returned to the Company by the Agent, a Bank or any of their respective Affiliates whether pursuant to a legal proceeding or otherwise.

(d) Each party's obligations under this subsection 9.13 shall survive the resignation or replacement of the Agent or any of its Affiliates, the resignation or replacement of, or the replacement of, a Bank, the termination of the Commitments or the repayment, satisfaction or discharge of all or any of the obligations under the Loan Documents.

9.14 Posting of Communications.

(a) The Company agrees that the Agent may, but shall not be obligated to, make any Communications available to the Company on the Approved Electronic Platform, the Communications on IntraLinks™, DebtDomain, SyndTrak, ClearPar or any other electronic platform chosen by the Agent to be used for the transmission system (the "Approved Electronic Platform").

(b) Although the Approved Electronic Platform and its primary web portal are secured with generally-applicable security policies implemented or modified by the Agent from time to time (including, as of the Closing Date, a user ID/password authorization system), the Approved Electronic Platform is secured through a per-deal authorization method whereby each user may access the Approved Electronic Platform on a deal-by-deal basis, each of the Banks and the Company acknowledges and agrees that the distribution of material through an electronic platform is not necessarily secure, that the Agent is not responsible for approving or vetting the representatives or contacts of any Bank that access the Approved Electronic Platform, and that there may be confidentiality and other risks associated with such distribution. Each of the Banks and the Company hereby approves distribution of the Communications through the Approved Electronic Platform and understands and assumes the risks of such distribution.

(c) THE APPROVED ELECTRONIC PLATFORM AND THE COMMUNICATIONS ARE PROVIDED "AS IS" AND "AS AVAILABLE". THE APPLICABLE PARTIES (AS DEFINED BELOW) DO NOT WARRANT THE ACCURACY OR COMPLETENESS OF THE COMMUNICATIONS, OR THE ADEQUACY OF THE APPROVED ELECTRONIC PLATFORM AND EXPRESSLY DISCLAIM ANY LIABILITY FOR ANY ERRORS OR OMISSIONS IN THE APPROVED ELECTRONIC PLATFORM AND THE COMMUNICATIONS. NO WARRANTY, WHETHER EXPRESS, IMPLIED OR STATUTORY, INCLUDING ANY WARRANTY OF MERCHANTABILITY, FITNESS FOR A PARTICULAR PURPOSE, OR NON-INFRINGEMENT OF THIRD PARTY RIGHTS OR FREEDOM FROM VIRUSES OR OTHER CODE DEFECTS, IS MADE BY ANY PARTY.

APPLICABLE PARTIES IN CONNECTION WITH THE COMMUNICATIONS OR THE APPROVED ELECTRONIC PLATFORM. SHALL THE AGENT, ANY PRIMARY LEAD ARRANGER, ANY DOCUMENTATION AGENT, ANY SYNDICATION AGENT, THEIR RESPECTIVE AFFILIATES OR THE RESPECTIVE DIRECTORS, OFFICERS, EMPLOYEES, AGENTS AND ADVISOR PERSON AND SUCH PERSON'S AFFILIATES (COLLECTIVELY, "APPLICABLE PARTIES") HAVE ANY LIABILITY TO ANY BANK OR ANY OTHER PERSON FOR DAMAGES OF ANY KIND, INCLUDING DIRECT OR INDIRECT, SPECIAL, PUNITIVE, CONSEQUENTIAL DAMAGES, LOSSES OR EXPENSES (WHETHER IN TORT, CONTRACT OR OTHERWISE) ARISING FROM THE COMPANY'S OR THE AGENT'S TRANSMISSION OF COMMUNICATIONS THROUGH THE INTERNET OR THE APPROVED PLATFORM.

(d) Each Bank agrees that notice to it (as provided in the next sentence) specifying that Communications have been posted on the Approved Electronic Platform shall constitute effective delivery of the Communications to such Bank for purposes of the Loan Documents. The Bank shall (1) to notify the Agent in writing (which could be in the form of electronic communication) from time to time of such Bank's (as a condition to which the foregoing notice may be sent by electronic transmission and (2) that the foregoing notice may be sent to such Bank at the address to which the foregoing notice may be sent by electronic transmission and

(e) Each of the Banks and the Company agrees that the Agent may, but (except as may be required by applicable law) shall not be obligated to, store the Communications on the Approved Electronic Platform in accordance with the Agent's generally applicable data retention procedures and policies.

(f) Nothing herein shall prejudice the right of the Agent or any Bank to give any notice or other communication pursuant to the Loan Documents in any other manner specified herein.

9.15 Borrower Communications.

(a) The Agent and the Banks agree that the Company may, but shall not be obligated to, make any Borrower Communications available through an electronic platform chosen by the Agent to be its electronic transmission system (the "Approved Borrower Portal").

(b) Although the Approved Borrower Portal and its primary web portal are secured with generally-applicable security policies implemented or modified by the Agent from time to time (including, as of the Closing Date, a user ID/password authorization system), the Banks and the Company acknowledges and agrees that the distribution of material through an electronic medium is not necessarily secure. The Agent is not responsible for approving or vetting the representatives or contacts of the Company that are added to the Approved Borrower Portal. Each of the Banks and the Company hereby approves the distribution of Borrower Communications through the Approved Borrower Portal and understands and assumes the risks of such distribution.

(c) THE APPROVED BORROWER PORTAL IS PROVIDED "AS IS" AND "AS AVAILABLE". THE APPLICABLE TERMS AND CONDITIONS (DEFINED BELOW) DO NOT

WARRANT THE ACCURACY OR COMPLETENESS OF THE BORROWER COMMUNICATION, OR THE ADEQUACY OF THE BORROWER PORTAL AND EXPRESSLY DISCLAIM LIABILITY FOR ERRORS OR OMISSIONS IN THE APPROVED BORROWER PORTAL AND THE BORROWER COMMUNICATIONS. NO WARRANTY OF ANY KIND, EXPRESS, IMPLIED OR STATUTORY, INCLUDING ANY WARRANTY OF MERCHANTABILITY, FITNESS FOR A PARTICULAR PURPOSE, NON-INFRINGEMENT OF THIRD PARTY RIGHTS OR FREEDOM FROM VIRUSES OR OTHER CODE DEFECTS, IS MADE BY THE APPLICABLE PARTIES IN CONNECTION WITH THE BORROWER COMMUNICATIONS OR THE APPROVED BORROWER PORTAL. IN NO EVENT SHALL THE AGENT, ANY AGENCY, CO-DOCUMENTATION AGENT, ANY SYNDICATION AGENT OR ANY OF THEIR RESPECTIVE RELATED PARTIES (COLLECTIVELY, "APPLICABLE PARTIES") HAVE ANY LIABILITY TO ANY LOAN PARTY, ANY BANK OR ANY OTHER PERSON OR ENTITY FOR DAMAGES OF ANY KIND, INCLUDING DIRECT OR INDIRECT, SPECIAL, INCIDENTAL OR CONSEQUENTIAL DAMAGES, REASONABLE ATTORNEY'S FEES AND EXPENSES (WHETHER IN TORT, CONTRACT OR OTHERWISE) ARISING OUT OF THE COMPANY'S TRANSMISSION OF BORROWER COMMUNICATIONS THROUGH THE INTERNET OR THE APPROVED BORROWER PORTAL.

"Borrower Communications" means, collectively, any notice of borrowing, interest election request, notice of prepayment, demand, communication, information, document or other material provided by or on behalf of the Company pursuant to any Loan Document or transactions contemplated therein which is distributed by the Company to the Agent through an Approved Borrower Portal.

(d) Each of the Banks and the Company agrees that the Agent may, but (except as may be required by applicable law) shall not be obligated to, store the Borrower Communications on the Approved Borrower Portal in accordance with the Agent's generally applicable retention procedures and policies.

(e) Nothing herein shall prejudice the right of the Company to give any notice or other communication pursuant to any Loan Document in any other manner specified in such Loan Document.

SECTION 10. MISCELLANEOUS

10.1 Amendments and Waivers. Neither this Agreement nor any terms hereof may be amended, supplemented or modified in any manner without the written consent of the Required Banks, the Agent and the Company may, from time to time, enter into written amendments, supplements or modifications hereto for the purpose of adding any provisions to this Agreement or modifying in any manner the rights of the Banks or of the Company hereunder or waiving, on such terms and conditions as the Agent may specify in such amendments, supplements or modifications, any of the requirements of this Agreement or any Default or Event of Default and its consequences; provided, however, that no such amendment, supplement or modification shall (a) extend the maturity (whether as stated, by acceleration or otherwise) of any Loan or (b) reduce the rate or extend the time of payment of interest thereon, or reduce or extend the payment of any fee payable to the Banks.

with a copy to: Joseph M. Ruschell
Vice President, Associate General Counsel & Corporate Secretary
Telephone: 502-580-1769
Email: JRuschell1@humana.com

with a copy (which shall not constitute notice) to :
Fried Frank Harris Shriver & Jacobson LLP
One New York Plaza
New York, New York 10004
Attention: Stewart Kagan, Esq.; Ezra Schneck, Esq.
Telephone: (212) 859-8550; (212) 859 8764
Email: Stewart.Kagan@friedfrank.com;
Ezra.Schneck@friedfrank.com

If to the Agent from the Company:
JPMorgan Chase Bank, N.A. at the address separately
provided to the Company

If to the Agent from the Banks:
JPMorgan Chase Bank, N.A.
383 Madison Avenue
New York, NY 10179
Attention:
Telephone:
Email:

provided that any notice, request or demand to or upon the Agent or the Banks pursuant to Section 2 shall not be effective until received and delivered through Approved Electronic Platforms or Approved Borrower Portals, to the extent provided in paragraph (b) below, shall be provided in said paragraph (b).

(b) Notices and other communications to the Company, the Banks and the Agent hereunder may be delivered or furnished through Approved Electronic Platforms or Approved Borrower Portals (as applicable), in each case, pursuant to procedures approved by the Agent. The foregoing shall not apply to notices pursuant to Section 2 unless otherwise agreed by the Agent and the applicable Bank. The Agent may, in its discretion, agree to accept notices and other communications to it hereunder by electronic communications pursuant to procedures approved by it; provided that approval of such procedures may be limited to particular notices or communications.

(c) Unless the Agent otherwise prescribes, (i) notices and other communications sent to an e-mail address shall be deemed to be received by the sender's receipt of an acknowledgement from the intended recipient (such as by the "return receipt requested" function of an e-mail client).

as available, return e-mail or other written acknowledgment) and (ii) notices or communications posted to an Internet or intranet web page (or an Approved Electronic Platform) shall be deemed received upon the deemed receipt by the intended recipient, at its e-mail address as set forth in the foregoing clause (i), of notification that such notice or communication is available and identifying the website address therefor; provided that, in the event of clauses (i) and (ii) above, if such notice, email or other communication is not sent during the normal business hours of the recipient, such communication shall be deemed to have been sent at the opening of business on the next business day for the recipient.

10.3 No Waiver; Cumulative Remedies. No failure to exercise and no delay in exercising, on the part of the Agent or any of its Subsidiaries, any right, remedy, power or privilege hereunder, shall operate as a waiver thereof; nor shall any single or partial exercise of any right, remedy, power or privilege hereunder preclude any other or further exercise thereof or the exercise of any other right, remedy, power or privilege. The rights, remedies, powers and privileges herein provided are cumulative and not exclusive of any rights, remedies, powers and privileges provided by any applicable law.

10.4 Survival of Representations and Warranties. All representations and warranties made hereunder and in any documents or statements delivered pursuant hereto or in connection herewith shall survive the execution and delivery of this Agreement.

10.5 Limitation of Liability; Payment of Expenses and Taxes; Indemnity.

(a) The Company hereby agrees that none of the Agent, any Bank nor any of their respective Affiliates or their respective officers, employees, advisors or agents or any Person, if any, who controls any one of the Agent or the Banks (each, a “Protected Person”) shall be liable (whether direct or indirect, in contract, tort or otherwise) to the Company for or in connection with or relating to this Agreement or the transactions contemplated hereby, except to the extent such liability is found in a final, non-appealable judgment by a court of competent jurisdiction to have resulted from such Protected Person’s gross negligence or willful misconduct; provided that nothing in this paragraph shall be deemed to constitute a waiver of any claim the Company may have, or to exculpate any Person from any liability that such Person may have to the Company arising out of such Person of its obligations under this Agreement. No Protected Person and none of the Company or any of its Subsidiaries shall be liable for damages arising from the use by unauthorized persons of information or other materials sent through electronic, telecommunications or information transmission systems (including the Internet, any Approved Electronic Platform and any Approved Borrower Portal) that are caused by such persons or for any special, indirect, consequential or punitive damages in connection with this Agreement (it being understood that such limitation shall not limit the Company’s indemnification obligations set forth in paragraph (c) below).

(b) The Company agrees (i) to pay or reimburse the Agent for all its reasonable and documented out-of-pocket costs and expenses incurred in connection with the development, preparation and execution of, and any amendment, supplement or modification to, this Agreement and the documents prepared in connection herewith, and the consummation of the transactions contemplated hereby and thereby, including, without limitation, the reasonable and documented out-of-pocket fees and disbursements of counsel to the Agent, and (ii) to pay or reimburse each Bank for all their reasonable and documented out-of-pocket costs and expenses incurred in connection with the development, preparation and execution of, and any amendment, supplement or modification to, this Agreement and the documents prepared in connection herewith, and the consummation of the transactions contemplated hereby and thereby, including, without limitation, the reasonable and documented out-of-pocket fees and disbursements of counsel to the Bank.

and expenses incurred in connection with the enforcement or preservation of any rights under this Agreement and any such other do without limitation, reasonable and documented out-of-pocket fees and disbursements of a single firm of counsel to the Agent and to and if necessary, one firm of local counsel in each appropriate jurisdiction and one firm of special counsel in each appropriate specialty of an actual or perceived conflict of interest where the Person affected by such conflict informs the Company of such conflict and their own counsel, of one additional firm of counsel for all such affected Persons, including one such local counsel in each appropriate jurisdiction and one such special counsel in each appropriate specialty).

(c) The Company will indemnify each of the Agent and the Banks and their respective Affiliates and the directors, officers, advisors and agents thereof and each Person, if any, who controls each one of the Agent and the Banks (any of the foregoing, an "Indemnified Person") and hold each Indemnified Person harmless from and against any and all claims, damages, liabilities and expenses (including with reasonable and documented out-of-pocket fees and disbursements of a single firm of counsel to all Indemnified Persons and if necessary, one firm of local counsel in each appropriate jurisdiction and one firm of special counsel in each appropriate specialty (and, in the case of an actual or perceived conflict of interest where the Indemnified Person affected by such conflict informs the Company of such conflict and thereafter retains one additional firm of counsel for all such affected Indemnified Persons, including one such local counsel in each appropriate jurisdiction and one such special counsel in each appropriate specialty)) which an Indemnified Person may incur or which may be asserted against it in connection with any litigation, investigation or proceeding (whether or not such Indemnified Person is a party to such litigation or investigation) involving the use of any proceeds of any Loans under this Agreement by the Company or any Subsidiary or any officer, director or employee of the Company in any litigation commenced by the Company against any of the Agent or the Banks which (i) seeks enforcement of any of the Company's rights or (ii) is determined adversely to any of the Agent or the Banks (all such non-excluded claims, damages, liabilities and expenses, including Indemnified Liabilities"); provided that the Company shall have no obligation hereunder to any Indemnified Person with respect to Indemnified Liabilities to the extent such Indemnified Liabilities resulted from the gross negligence, bad faith or willful misconduct of such Indemnified Person as determined by a final, non-appealable judgment of a court of competent jurisdiction. This paragraph (c) shall not apply with respect to any taxes that represent losses, claims, damages, etc. arising from any non-tax claim.

(d) The agreements in this subsection 10.5 shall survive repayment of the Loans and all other amounts payable by the Company.

10.6 Successors and Assigns; Participations; Purchasing Banks.

(a) This Agreement shall be binding upon and inure to the benefit of the Company, the Banks, the Agent and their respective successors, assigns and assigns, except that the Company may not assign or transfer any of its rights or obligations under this Agreement without the prior written consent of each Bank.

(b) Any Bank other than a Conduit Lender may, in accordance with applicable law, at any time sell to one or more banks or other financial institutions other than the Company or a Defaulting Bank, all or part of its rights or obligations under this Agreement.

Bank or any of their respective Affiliates and Subsidiaries (“Participants”) participating interests in any Loans owing to such Bank, and such Bank and/or any other interests of such Bank hereunder and under the other Loan Documents. In the event of any such sale of a participating interest to a Participant, such Bank’s obligations under this Agreement to the other parties under this Agreement shall remain unchanged. If such Bank shall remain solely responsible for the performance thereof, such Bank shall remain the holder of any Notes for all purposes under this Agreement, and the Company and the Agent shall continue to deal solely and directly with such Bank in connection with such Bank’s obligations under this Agreement and under the other Loan Documents. The Company agrees that if amounts outstanding under this Agreement are not paid or unpaid, or shall have been declared or shall have become due and payable upon the occurrence of an Event of Default, each Participant shall be deemed to have the right of offset in respect of its participating interest in amounts owing under this Agreement to the same extent as if such participating interest were owing directly to it as a Bank under this Agreement; provided that such right of offset shall be subject to the right of such Participant to share with the Banks, and the Banks agree to share with such Participant, as provided in subsection 10.7. The Company agrees that each Participant shall be entitled to the benefits of, and subject to the limitations of, subsections 2.13, 2.14 and 2.15 with respect to its participation in the Commitments and the Term Benchmark Loans outstanding from time to time; provided that no Participant shall be entitled to a greater amount pursuant to such subsections than the transferor Bank would have been entitled to receive in respect of the amount of the participation transferred by such transferor Bank to such Participant had no such transfer occurred, except to the extent such entitlement to receive is the result of results from a change in law that occurs after the Participant acquired the applicable participation. No Participant shall be entitled to the benefits of subsection 2.15 unless such Participant complies with subsection 2.15(c) as if it were a Bank, and no Participant shall be entitled to the benefits of an amendment, supplement, modification or waiver of or to this Agreement, unless the same is an amendment, supplement, modification or waiver described in clause (a) of the proviso to subsection 10.1 which requires the consent of the Bank from which it purchased its participation. The participation agreement may provide that such Bank must obtain the participant’s consent before approving any such amendment, supplement, modification or waiver. Each Bank that sells a participation shall, acting solely for this purpose as a non-fiduciary agent of the Company, register on which it enters the name and address of each Participant and the principal amounts (and stated interest) of each Participant’s participation in Loans, Commitments and/or any other interests of such Bank hereunder and under the other Loan Documents (the “Participant Register”). No Bank shall have any obligation to disclose all or any portion of the Participant Register to any Person (including the identity of any Person) information relating to a Participant’s interest in any Loans, Commitments and/or any other interests of such Bank hereunder and under the other Loan Documents) except to the extent that such disclosure is (i) necessary to establish that such Loan, Commitment or other interest is in compliance with Section 5f.103-1(c) of the United States Treasury Regulations or (ii) otherwise required by law or any Governmental Authority. The Participant Register shall be conclusive absent manifest error, and such Bank and the Agent shall treat each Person whose name is in the Participant Register pursuant to the terms hereof as the owner of such participation for all purposes of this Agreement.

(d) Any Bank other than a Conduit Lender may, in accordance with applicable law, at any time sell to one or more ad financial institutions or Approved Funds other than, in each case, to a natural person or to the Company or to a Defaulting Bank respective Subsidiaries ("Purchasing Banks") all or any part of its rights and/or obligations under this Agreement pursuant to an Assignment, executed by such Purchasing Bank, such transferor Bank and the Agent (which consent shall not be unreasonably withheld); provided, however, that (i) the Commitments purchased by such Purchasing Bank that is not then a Bank, a Lender Affiliate or an Approved Fund, by the Company (which consent shall not be unreasonably withheld); provided, however, that (i) the Commitments purchased by such Purchasing Bank that is not then a Bank, a Lender Affiliate or an Approved Fund shall be equal to or greater than \$5,000,000, (ii) the transferor Bank which has transferred less than all of its Loans and Commitments to such Purchasing Bank shall retain a minimum Commitment, after giving effect to such sale, equal to or greater than \$10,000,000, (iii) the transferor Bank shall be required while an Event of Default under subsection 8.1(a) or 8.1(f) is continuing and (iv) the Company shall be required to consent to any such assignment unless it shall object within fifteen Business Days after having received written notice thereof. For purposes of the proviso contained in the previous sentence, the amounts described therein shall be aggregated in respect of each Bank, its Lender Affiliates and Approved Funds, if any. Upon (i) such execution of such Assignment and Assumption, (ii) delivery of an executed copy thereof to the Company and (iii) payment by such Purchasing Bank, such Purchasing Bank shall for all purposes be a Bank party to this Agreement and shall have the same obligations of a Bank under this Agreement, to the same extent as if it were an original party hereto with the Commitment Percentage of the Commitments set forth in such Assignment and Assumption. Such Assignment and Assumption shall be deemed to amend this Agreement and only to the extent, necessary to reflect the addition of such Purchasing Bank and the resulting adjustment of Commitment Percentage of the Commitments. The purchase by such Purchasing Bank of all or a portion of the rights and obligations of such transferor Bank under this Agreement upon the consummation of any transfer to a Purchasing Bank, pursuant to this subsection 10.6(d), the transferor Bank, the Agent and the Company shall make appropriate arrangements so that, if required, replacement Notes are issued to such transferor Bank and new Notes or, as appropriate, new Loans are issued to such Purchasing Bank, in each case in principal amounts reflecting their Commitment Percentages or, as appropriate, new Loans as adjusted pursuant to such Assignment and Assumption. Notwithstanding the foregoing, any Conduit Lender may assign or otherwise designate a Designating Bank hereunder without the consent of the Company or the Agent any or all of the Loans it may have funded hereunder pursuant to a designation agreement and without regard to the limitations set forth in the first sentence of this subsection 10.6(d).

(e) The Agent shall maintain at its address referred to in subsection 10.2 a copy of each Assignment and Assumption and shall act solely for this purpose as a non-fiduciary agent of the Company, a register (the "Register") for the recordation of the names and addresses of the Banks and the Commitment of, and principal amount (and stated interest) of the Loans owing to, each Bank from time to time. The Register shall be conclusive, in the absence of manifest error, and the Company, the Agent and the Banks shall treat each Person who is recorded in the Register as the owner of the Loan recorded therein for all purposes of this Agreement. The Register shall be available for inspection by the Company or any Bank (in the case of a Bank, only with respect to its Aggregate Outstanding Extensions of Credit, except to the extent that such disclosure is necessary to establish that such Loan, Commitment or other

interest is in registered form under Section 5f.103-1(c) of the United States Treasury Regulations) at any reasonable time and from reasonable prior notice.

(f) Upon its receipt of an Assignment and Assumption executed by a transferor Bank, a Purchasing Bank and the Agent or a Purchasing Bank that is not then a Bank, a Lender Affiliate or an Approved Fund, by the Company (so long as no Event of Default under 8.1(a) or 8.1(f) is continuing)) together with payment to the Agent of a registration and processing fee of \$3,500, the Agent shall (i) on such Assignment and Assumption and (ii) on the Transfer Effective Date determined pursuant thereto record the information contained in such Assignment and Assumption in the Public Register and give notice of such acceptance and recordation to the transferor Bank, the Purchasing Bank and the Company.

(g) The Company authorizes each Bank to disclose to any Participant or Purchasing Bank (each, a “Transferee”) and to any Transferee any and all financial information in such Bank’s possession concerning the Company which has been delivered to such Bank by the Company pursuant to this Agreement or which has been delivered to such Bank by the Company in connection with such Bank’s creation of the Company prior to entering into this Agreement so long as such Transferee agrees to comply with confidentiality provisions substantially similar to those set forth in subsection 10.12.

(h) Upon any transfer, pursuant to this subsection 10.6, of any interest in this Agreement, the transferor Bank shall cause the transferee Bank to concurrently with the effectiveness of such transfer, to comply with the provisions of subsection 2.15.

(i) For the avoidance of doubt, the parties to this Agreement acknowledge that the provisions of this subsection 10.6 relating to assignments relate only to absolute assignments and that such provisions do not prohibit assignments creating security interests by a Bank to any Federal Reserve Bank, in accordance with applicable law; provided that no such pledge or assignment shall release such Bank from its obligations hereunder or substitute any such pledgee or assignee for such Bank as a party hereto.

(j) Each of the Company, each Bank and the Agent hereby confirms that it will not institute against a Conduit Lender or any Person in instituting against a Conduit Lender any bankruptcy, reorganization, arrangement, insolvency or liquidation proceeding or any other proceeding under bankruptcy or similar law, for one year and one day after the payment in full of the latest maturing commercial paper note issued by such Lender; provided, however, that each Bank designating any Conduit Lender hereby agrees to indemnify, save and hold harmless each of the Company, each Bank and the Agent for any loss, cost, damage or expense arising out of its inability to institute such a proceeding against such Conduit Lender during the term of its forbearance.

10.7 Adjustments; Set-off.

(a) Except to the extent that this Agreement or a court order provides for payments to be allocated to a particular Bank, any Bank (a “Benefitted Bank”) shall at any time receive any payment of all or part of its Loans owing to it, or interest thereon, or receive any proceeds in respect thereof (whether voluntarily or involuntarily, by offset, pursuant to events or proceedings of the nature referred to in subsection 2.15 or otherwise) in a greater proportion than any such payment to and collateral received by any other Bank, if any, in respect of such Loans owing to it, or interest thereon, such Benefitted Bank shall purchase for cash from

purposes, including without limitation, in connection with any workout, restructuring, enforcement of remedies, bankruptcy proceeding among the Agent, the Banks, and the Company, Electronic Signatures transmitted by telecopy, emailed pdf. or any other electronic reproduces an image of an actual executed signature page and/or any electronic images of this Agreement, any other Loan Document and/or any Ancillary Document shall have the same legal effect, validity and enforceability as any paper original, (B) agrees that the Agent and the Company may, at its option, create one or more copies of this Agreement, any other Loan Document and/or any Ancillary Document in the form of an electronic record in any format, which shall be deemed created in the ordinary course of such Person's business, and destroy the original document (and all such electronic records shall be considered an original for all purposes and shall have the same legal effect, validity and enforceability as a paper record), (C) waives any argument, defense or right to contest the legal effect, validity or enforceability of this Agreement, any other Loan Document and/or any Ancillary Document based solely on the lack of paper original copies of this Agreement, such other Loan Document and/or any Ancillary Document, respectively, including with respect to any signature pages thereto and (D) waives any claim against any Protected Person for any losses, claims (including intraparty claims), demands, damages or liabilities of any kind arising solely from the Agent's and/or any Bank's use of Electronic Signatures and/or transmissions by telecopy, emailed pdf. or any other electronic means that reproduces an image of an actual executed signature page, including any losses, claims (including intraparty claims), demands, damages or liabilities of any kind arising as a result of the Company to use any available security measures in connection with the execution, delivery or transmission of any Electronic Signature.

10.9 GOVERNING LAW. THIS AGREEMENT AND EACH OTHER LOAN DOCUMENT AND THE RIGHTS AND OBLIGATIONS OF THE PARTIES UNDER THIS AGREEMENT AND EACH OTHER LOAN DOCUMENT SHALL BE GOVERNED BY AND CONSTRUED AND INTERPRETED IN ACCORDANCE WITH, THE LAW OF THE STATE OF NEW YORK.

10.10 WAIVERS OF JURY TRIAL. THE COMPANY, THE AGENT AND THE BANKS EACH HEREBY IRREVOCABLY AND UNCONDITIONALLY WAIVE TRIAL BY JURY IN ANY LEGAL ACTION OR PROCEEDING RELATING TO THIS AGREEMENT AND EACH OTHER LOAN DOCUMENT AND FOR ANY COUNTERCLAIM THEREIN.

10.11 Submission To Jurisdiction; Waivers. The Company, the Agent and the Banks each hereby irrevocably and unconditionally

(a) submits for itself and its property in any legal action or proceeding relating to this Agreement, or for recognition and enforcement of any judgment in respect thereof, to the exclusive general jurisdiction of the United States District Court for the Southern District of New York in the Borough of Manhattan (or if such court lacks subject matter jurisdiction, the Supreme Court of the State of New York sitting in the Borough of Manhattan), and appellate courts from any thereof;

(b) consents that any such action or proceeding may be brought in such courts, and waives any objection that it may not be brought to the venue of any such action or

proceeding in any such court or that such action or proceeding was brought in an inconvenient court and agrees not to plead or c

(c) agrees that service of process in any such action or proceeding may be effected by mailing a copy thereof by registered mail (or any substantially similar form of mail), postage prepaid, to its address set forth in subsection 10.2 or at such other address of which it has been notified pursuant thereto; and

(d) agrees that nothing herein shall affect the right to effect service of process in any other manner permitted by law or to sue in any other jurisdiction.

10.12 Confidentiality of Information. Each Bank acknowledges that some of the information furnished to such Bank pursuant to this Agreement may be received by such Bank prior to the time such information shall have been made public, and each Bank agrees to keep such non-public information so furnished confidential and shall make no use of such non-public information until it shall have become public. (a) in connection with matters involving operations under or enforcement of this Agreement, (b) in accordance with each Bank's obligations under applicable law or regulation or pursuant to subpoenas or other process to make information available to governmental or regulatory agencies (including courts, securities authorities) and examiners or to others (in which case such Bank agrees to inform the Company promptly thereof prior to such disclosure, except as not prohibited by law, rule or regulation and except with respect to any audit or examination conducted by bank accountants or any rating agency exercising examination or regulatory authority), (c) to each Bank's Affiliates, and its and their employees, agents, directors, officers and other personnel (including accountants, legal counsel and other advisors) who need to know such information in connection with this Agreement to carry out their duties. Persons are informed of the confidential nature of such information and are instructed to keep such information confidential, (d) to keep such information confidential to prospective Transferees and to direct or indirect counterparties in connection with swaps, derivatives or other transaction under which the Company may be made by reference to the Company and its obligations, this Agreement or payments hereunder so long as such Persons agree to keep such information confidential, (e) with the prior written consent of the Company, (f) to the extent such Bank or Affiliate thereof (with respect to Affiliates, to the extent such Affiliates need to know such information, are informed of the confidential nature of such information and are instructed to keep such information confidential), (g) if requested or required to do so in connection with any legal proceeding or similar proceeding (in which case such Bank shall promptly notify the Company, in advance, to the extent not prohibited by law, rule or regulation), (h) that has been publicly disclosed other than by reason of disclosure by such Bank or its Affiliates, officers, directors, employees, agents or other personnel in breach of this subsection 10.12, (i) in connection with the exercise of any remedy hereunder or under any other Loan Document, (j) to a rating agency when required by it; provided that, prior to any disclosure, such rating agency shall undertake in writing to preserve the confidentiality of the confidential information relating to the Company received by it from the Agent or any Bank, (k) on a confidential basis to the CUSIP Service Agency or any similar agency in connection with the issuance and monitoring of CUSIP numbers with respect to the Loans, (l) to market data compilers, (m) to service providers to the lending industry and service providers to the Agent and the Banks in connection with the administration and servicing of the Loans, (n) to the extent required by a potential or actual insurer or reinsurer in connection with providing insurance coverage for the Loans.

reinsurance or credit risk mitigation coverage under which payments are to be made or may be made by reference to this Agreement.

10.13 [Reserved].

10.14 USA PATRIOT Act. Each Bank hereby notifies the Company that pursuant to the requirements of the USA Patriot Act, Pub. L. 107-56 (signed into law October 26, 2001)) (the “Patriot Act”) or the Beneficial Ownership Regulation, it is required to obtain information that identifies the Company, which information includes the name and address of the Company and other information that the Bank to identify the Company in accordance with the Patriot Act or the Beneficial Ownership Regulation. The Company shall, upon request by the Agent or any Bank, provide all documentation and other information that the Agent or such Bank reasonably requests to comply with its ongoing obligations under applicable “know your customer” and anti-money laundering rules and regulations, including the Patriot Act and the Beneficial Ownership Regulation.

10.15 No Fiduciary Duty. The Agent, each Bank and their Affiliates (collectively, solely for purposes of this paragraph, the “Parties”) have economic interests that conflict with those of the Company, its stockholders and/or its Affiliates. The Company agrees that the Agent, each Bank and their Affiliates shall not be deemed to have created an advisory, fiduciary or agency relationship or fiduciary implied duty between any Bank, on the one hand, and the Company, its stockholders or its Affiliates, on the other. The Company agrees that (i) the transactions contemplated by this Agreement and the other Loan Documents (including the exercise of rights and remedies thereunder) are arm’s-length commercial transactions between the Banks, on the one hand, and the Company, on the other, and (ii) the Company, its stockholders and its Affiliates, in connection with the process leading thereto, (x) no Bank has assumed an advisory or fiduciary responsibility in favor of the Company, its stockholders or its Affiliates with respect to the transactions contemplated hereby (or the exercise of rights or remedies with respect to the process leading thereto (irrespective of whether any Bank has advised, is currently advising or will advise the Company, its stockholders or its Affiliates on other matters) or any other obligation to the Company except the obligations expressly set forth in this Agreement and the other Loan Documents, and (y) each Bank is acting solely as principal and not as the agent or fiduciary of the Company, its management, stockholders, creditors or its Affiliates. The Company acknowledges and agrees that it has consulted its own legal and financial advisors to the extent it deemed appropriate and is responsible for making its own independent judgment with respect to such transactions and the process leading thereto. The Company does not claim that any Bank has rendered advisory services of any nature or respect, or owes a fiduciary or similar duty to the Company, its stockholders or its Affiliates in connection with such transaction or the process leading thereto.

10.16 Acknowledgement and Consent to Bail-In of Affected Financial Institutions. Notwithstanding anything to the contrary in this Document or in any other agreement, arrangement or understanding among any such parties, each party hereto acknowledges that any liability of any Affected Financial Institution arising under any Loan Document, to the extent such liability is unsecured, may be subject to the winding up or conversion powers of the applicable Resolution Authority and agrees and consents to, and acknowledges and agrees to be bound by, the

(a) the application of any Write-Down and Conversion Powers by the applicable Resolution Authority to any such Liability hereunder which may be payable to it by any party hereto that is an Affected Financial Institution; and

(b) the effects of any Bail-In Action on any such liability, including, if applicable:

(i) a reduction in full or in part or cancellation of any such liability;

(ii) a conversion of all, or a portion of, such liability into shares or other instruments of ownership in such Affected Financial Institution, its parent undertaking, or a bridge institution that may be issued to it or otherwise conferred on it, and that such instruments of ownership will be accepted by it in lieu of any rights with respect to any such liability under this Agreement or any other Document; or

(iii) the variation of the terms of such liability in connection with the exercise of the write-down and conversion powers of the applicable Resolution Authority.

10.17 Severability. Any provision of this Agreement held to be invalid, illegal or unenforceable in any jurisdiction shall not affect the validity, legality and enforceability of the remaining provisions hereof; and the invalidity of a particular provision in a particular jurisdiction shall not invalidate such provision in any other jurisdiction.

10.18 Interest Rate Limitation. Notwithstanding anything herein to the contrary, if at any time the interest rate applicable to such Loan, together with all fees, charges and other amounts which are treated as interest on such Loan under applicable law (collectively the "Interest"), exceed the maximum lawful rate (the "Maximum Rate") which may be contracted for, charged, taken, received or reserved by the Bank in such jurisdiction, the rate of interest payable in respect of such Loan hereunder, together with all Charges payable in respect thereof, shall be limited to the Maximum Rate and to the extent lawful, the interest and Charges that would have been payable in respect thereof but were not payable as a result of the operation of this Section 10.18 shall be cumulated and the interest and Charges payable to such Bank in respect of other Loans or periods shall be increased (but not above the Maximum Rate therefor) until such cumulated amount, together with interest at the NYFRB Rate to the date of repayment, shall have been received by such Bank.

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IN WITNESS WHEREOF, the parties hereto have caused this Agreement to be duly executed and delivered by their authorized officers as of the day and year first above written.

HUMANA INC.

By: /s/ Robert M. Marcoux, Jr.
Name: Robert M. Marcoux, Jr.
Title: Vice President and Treasurer

Humana 364-Day Revolving Credit Agreement

JPMORGAN CHASE BANK, N.A., as Agent and as a Bank

By: /s/ Gregory T. Martin

Name: Gregory T. Martin

Title: Executive Director

Humana 364-Day Revolving Credit Agreement

Bank of America, N.A., as a Bank

By: /s/ Joseph L. Corah

Name: Joseph L. Corah

Title: Managing Director

Humana 364-Day Revolving Credit Agreement

CITIBANK, N.A.,
as a Bank

By: /s/ Maureen Maroney
Name: Maureen Maroney
Title: Vice President

Humana 364-Day Revolving Credit Agreement

GOLDMAN SACHS BANK USA,
as a Bank

By: /s/ Nicholas Merino
Name: Nicholas Merino
Title: Authorized Signatory

Humana 364-Day Revolving Credit Agreement

PNC Bank, National Association,
as a Bank

By: /s/ Kathleen J. McClure
Name: Kathleen J. McClure
Title: VP - FIG Underwriter

Humana 364-Day Revolving Credit Agreement

US BANK NATIONAL ASSOCIATION,
as a Bank

By: /s/ Michael West
Name: Michael West
Title: Senior Vice President

Humana 364-Day Revolving Credit Agreement

WELLS FARGO BANK, NATIONAL ASSOCIATION,
as a Bank

By: /s/ Darin Mullis
Name: Darin Mullis
Title: Managing Director

Humana 364-Day Revolving Credit Agreement

BARCLAYS BANK PLC,
as a Bank

By: /s/ Edward Pan
Name: Edward Pan
Title: Vice President

Humana 364-Day Revolving Credit Agreement

MIZUHO BANK, LTD.,
as a Bank

By: /s/ Tracy Rahn
Name: Tracy Rahn
Title: Managing Director

Humana 364-Day Revolving Credit Agreement

MORGAN STANLEY BANK, N.A.,
as a Bank

By: /s/ Michael King
Name: Michael King
Title: Authorized Signatory

Humana 364-Day Revolving Credit Agreement

Truist Bank,
as a Bank

By: /s/ Anton Brykalin
Name: Anton Brykalin
Title: Director

Humana 364-Day Revolving Credit Agreement

DEUTSCHE BANK AG NEW YORK BRANCH,
as a Bank

By: /s/ Ming K. Chu
Name: Ming K. Chu
Title: Director

By: /s/ Alison Lugo
Name: Alison Lugo
Title: Vice President

Humana 364-Day Revolving Credit Agreement

REGIONS BANK,
as a Bank

By: /s/ Brian Walsh
Name: Brian Walsh
Title: Managing Director

Humana 364-Day Revolving Credit Agreement

Royal Bank of Canada,
as a Bank

By: /s/ Scott MacVicar
Name: Scott MacVicar
Title: Authorized Signatory

Humana 364-Day Revolving Credit Agreement

The Toronto-Dominion Bank, New York Branch,
as a Bank

By: /s/ Mike Tkach
Name: Mike Tkach
Title: Authorized Signatory

Humana 364-Day Revolving Credit Agreement

THE BANK OF NEW YORK MELLON,
as a Bank

By: /s/ Luke Daly
Name: Luke Daly
Title: Vice President

Humana 364-Day Revolving Credit Agreement

AGRICULTURAL BANK OF CHINA, LTD.,
NEW YORK BRANCH,
as a Bank

By: _____ /s/ Nelson Chou

Name: Nelson Chou

Title: SVP & Head of Corporate Banking Department

Humana 364-Day Revolving Credit Agreement

BANCO BILBAO VIZCAYA ARGENTARIA,
S.A. NEW YORK BRANCH,
as a Bank

By: /s/ Brian Crowley

Name: Brian Crowley

Title: Managing Director

By: /s/ Andrew Pargament

Name: Andrew Pargament

Title: Managing Director

Humana 364-Day Revolving Credit Agreement

Fifth Third Bank, National Association,
as a Bank

By: /s/ Thomas Avery

Name: Thomas Avery

Title: Managing Director

Humana 364-Day Revolving Credit Agreement

By: /s/ Aron Lau

Name: Aron Lau

Title: Director

Humana 364-Day Revolving Credit Agreement

SUMITOMO MITSUI BANKING CORPORATION,
as a Bank

By: /s/ Cindy Hwee

Name: Cindy Hwee
Title: Director

Humana 364-Day Revolving Credit Agreement

Schedule II

PRICING GRID

Public Debt Ratings S&P/Moody's	Alternate Base Rate Margin	Term Benchmark Margin	Facility Fee
Level 1 $\geq$ A-/A3	0 bps	94.0 bps	6.0 bps
Level 2 $\geq$ BBB+/Baa1	5.5 bps	105.5 bps	7.0 bps
Level 3 $\geq$ BBB/Baa2	16.0 bps	116.0 bps	9.0 bps
Level 4 $\geq$ BBB-/Baa3	25.0 bps	125.0 bps	12.5 bps
Level 5 < BBB-/Baa3	35.0 bps	135.0 bps	15.0 bps

Pricing will be determined based upon the higher of the ratings from S&P or Moody's; provided that (i) in the event the Company's rating is more than one Level apart, the pricing will be determined by using the rating which is one Level below the higher rating, (ii) if on any day a rating from one of S&P or Moody's is available, then the Level of such rating shall be applicable for such day and (iii) if on any day a rating is not available from neither of S&P or Moody's, then Level 5 shall be applicable for such day. Any change in the applicable Level resulting from a change in the rating of S&P or Moody's shall become effective three Business Days after such change is publicly announced by S&P or Moody's, as applicable.

Schedule II – Pricing Grid